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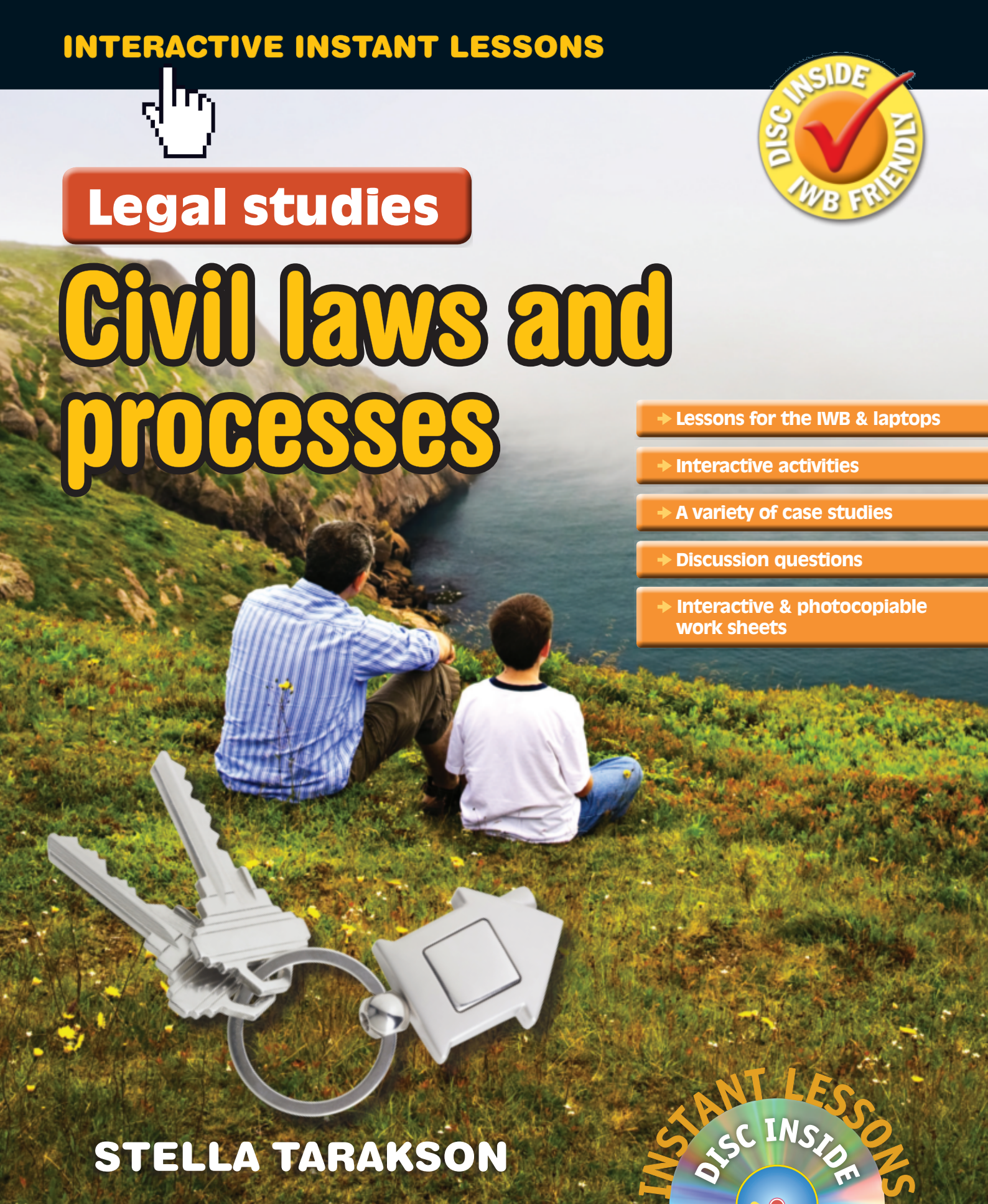

STELLA TARAKSON

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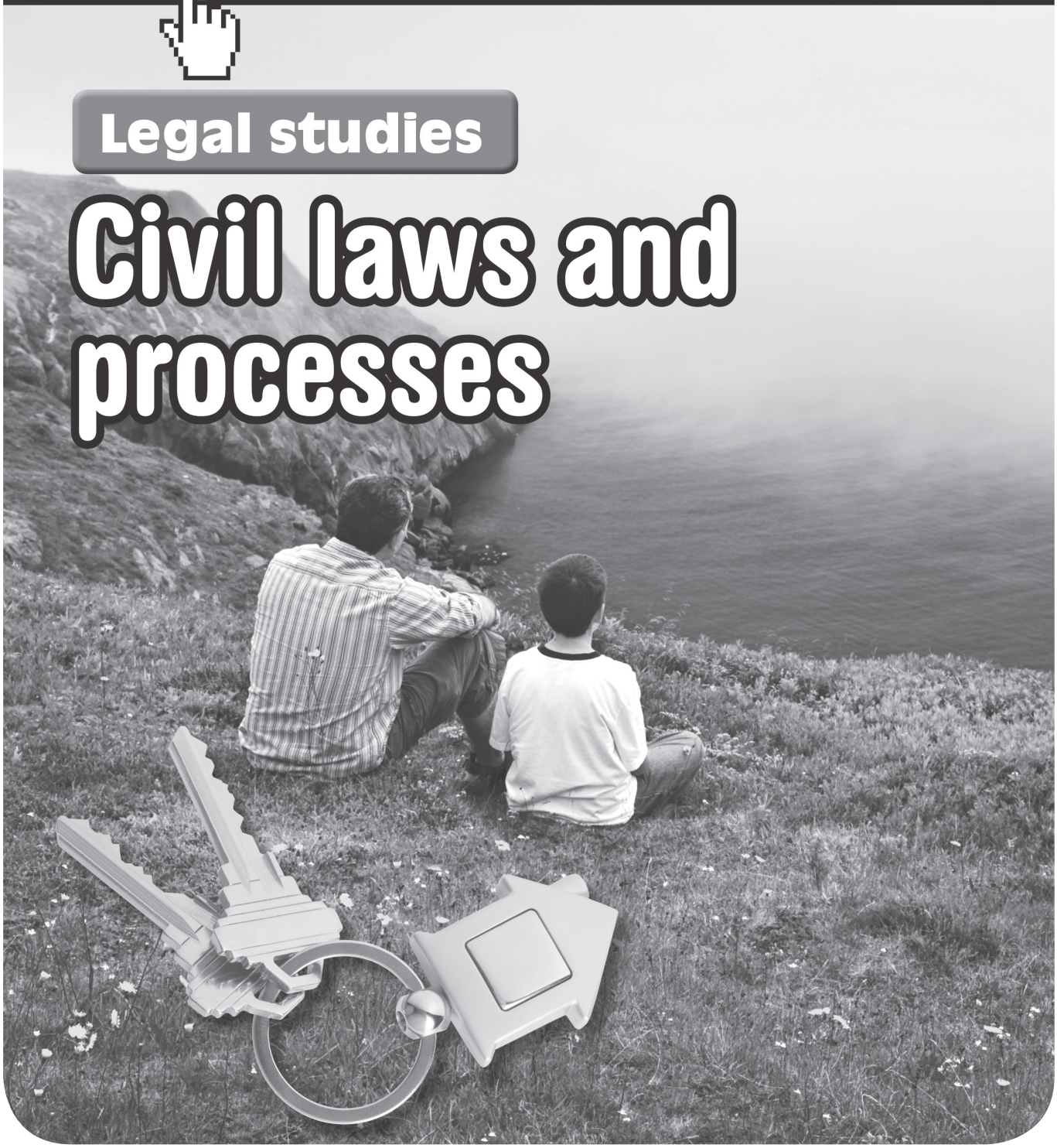

STELLA TARAKSON

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Introduction

The *Interactive Instant Lessons – Legal studies* series is designed to assist students of Legal studies in years 11 and 12. It consists of three titles: *The Australian legal system, Criminal laws and processes* and *Civil laws and processes*. Students are engaged through high-interest fictional scenarios and real-life cases and events that put learning in context and bring the law to life. The series is an ideal supplement to your existing resources, to introduce new topics or for revision and exam preparation.

This book contains work sheets to be photocopied and used as traditional handouts. The work sheets consolidate and extend the content from the onscreen presentations. Some work sheets require Internet access and are marked with a research icon for quick identification. The work sheets are also available in an interactive form on the CD-ROM for laptop classes. You'll find hints for making the best use of the work sheets in the quick-reference guides contained in the folder.

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The nature of civil law

1 What is civil law?

REMEMBER

Civil law is concerned with disputes between individuals. The aim of civil cases is to obtain damages to compensate for loss suffered. The two main areas are:

- *contract law, which concerns disputes that arise where a legally binding agreement has been breached by a party to the agreement*
- *tort law, which concerns disputes that arise where a wrongdoing causes personal injury, property damage and/or financial loss.*

1 **Do the terms in the word bank refer to civil law, criminal law or both? Write each in the correct space in the table.**

Word bank

punishment	juries	evidence	standard of proof
defendant	sue	guilty	beyond reasonable doubt
appeal	compensation	fines	balance of probabilities
plaintiff	prosecution	damages	

Civil law terms	Criminal law terms	Civil and criminal law terms

2 **Complete the sentences below.**

a **Civil law involves non- _____ disputes between individuals and/or companies.**

b **An individual who takes civil action against another individual or company is known as the _____.**

c **An individual or company against whom legal action is taken is known as the _____.**

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3 Explain the key difference between a contract and a tort.

4 Outline some of the differences between criminal and civil law.

5 **a** What is meant by the term 'burden of proof'?

b Explain why the burden of proof generally rests with the plaintiff.

6 What is meant be the term 'standard of proof?'

7 **a** What is the standard of proof for civil cases?

b Explain in your own words what this means.

8 **a** What is the standard of proof for criminal cases?

b Is this a higher or lower standard than for civil cases?

c Explain why the standard differs for criminal and civil cases.

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2 Overlaps with criminal law

REMEMBER

Legal wrongdoing is something that causes injury, damage or loss. Depending on the nature of the wrongdoing, it might be covered by criminal law or civil law. Some incidents can lead to action under both criminal and civil law.

Case study: Franca

Franca was single and lived in a rental apartment with two friends. She had a casual office job and was studying part-time at university. She became friends with Alex, a young man who attended all the same lectures as her. Franca saw their relationship as platonic and believed Alex felt the same. One day he invited her over to his flat and Franca accepted.

Once there, however, she quickly regretted her decision. Alex made it clear he expected more, and became rough when Franca resisted. He told her he did not like women who played hard to get. Frightened and upset, Franca insisted she was not interested but he did not listen. Alex sexually assaulted Franca and her wrist was broken in the struggle.

Franca slid into a depression afterwards. Her broken wrist prevented her from working, and she was not entitled to sick leave. Her medical bills were costly and she was unable to pay her share of the rent. She dropped out of university because she could not bear to see Alex in the lectures. She felt her life was in a mess.

Franca was encouraged by her friends to make a report to the police.

1 **a** **Who would initiate criminal proceedings against Alex, Franca or the police?**

_____

b **Could Franca insist that the police not 'press charges'? Outline a reason for your answer.**

_____

_____

2 **Alex was prosecuted but found not guilty. This was partly because the standard of proof for criminal cases is very high. Identify the standard of proof in criminal cases.**

_____

3 **Franca considers suing Alex for the injuries she sustained.**

a **Who would initiate civil proceedings against Alex, Franca or the police?**

_____

b **Identify the standard of proof for civil cases.**

_____

c **Is it possible for a civil case to succeed while a related criminal case fails? Explain the reasons for your answer.**

_____

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4 Identify four matters for which Franca might be compensated.

5 Describe what might happen if Franca wins the case but Alex claims he has no money or assets with which to pay her.

6 A friend suggests Franca make a claim under her state's Victims' Compensation Scheme. Although the payout may be lower than if she had sued, the payout would come from a government fund. Franca can claim under this fund even though Alex was found not guilty, and the civil standard of proof would be used. Outline four types of issues Franca would consider when making her decision.

7 Another example where civil and criminal laws overlap is in the area of road accidents.

a Identify four possible criminal charges that may be associated with road accidents.

b Identify two civil law actions that may be associated with road accidents.

c Would the civil and criminal cases be heard separately or together? Explain.

d Generally speaking, is it easier for the victim of a road accident to obtain compensation than the victim of an assault? Explain your answer.

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3 Civil law remedies

REMEMBER

A plaintiff may seek compensation or damages to help make up for loss suffered, or they may seek an order that certain action be taken or refrained from being taken.

1 A plaintiff may seek an injunction to compensate for loss suffered. ☐ True ☐ False

2 A payout of damages aims to put the plaintiff back in the position they were in when the incident occurred. ☐ True ☐ False

3 Nominal damages are very large. ☐ True ☐ False

4 The losing party always pays the costs in a civil case. ☐ True ☐ False

5 Complete the following table of civil law remedies. The first row has been done for you.

Type of order	Purpose of order	Who seeks the order	Example of when such an order might be sought
a Specific performance	Compels a party to fulfil their obligations under a contract	plaintiff	The sale of something unique, such as artwork
b Compensation			
c Injunction			
d Costs order			

Case study: Clare

Clare put her house on the market at the height of the property boom. It sold at auction for $900 000. Evan, the buyer, was able to pay the required 10 per cent deposit – that is, $90 000. However, his home loan application ended up being refused. He was unable to pay the balance of $810 000 and the sale fell through. Evan was in breach of the contract of sale.

Clare had to put her house back on the market. In that time, however, interest rates had jumped and house prices had dropped significantly. The real estate market slowed to unprecedented levels. It took Clare a long time to find another buyer, and the best price she could obtain was $700 000, even though the house had not dropped in quality or presentation.

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6 **a** **What type of civil law remedy would Clare seek against Evan?**

b **What would be the aim of her seeking that remedy?**

7 **a** **How much do you expect Clare would receive, ignoring any further costs she may have incurred while putting her property back on the market? Show how you worked out the answer.**

b **Identify three further types of costs Clare might have incurred by putting her house back up for sale.**

8 **Plaintiffs are expected to take steps to mitigate their losses. Explain what this means.**

9 **Assume the housing market had slowed slightly, but the main reason for the drop was Clare's failure to mitigate her loss.**

a **Identify three types of matters within Clare's control that might have led to the drop in price.**

b **Describe how the court might determine the damages Clare could be paid under those circumstances.**

10 **Generally speaking, specific performance is only ordered when damages would fail to be an adequate remedy. Should Clare have sought specific performance? Give reasons for your answer.**

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4 Keeping it out of court

REMEMBER

Litigation is slow, expensive and stressful, with no guarantee of success, so many civil cases are resolved out of court. Ways to do this are known as alternative dispute resolution (ADR) methods.

1 **The words or phrases below describe either the general advantages of ADR or of litigation. Write them in the correct spaces in the table.**

a faster

b legal representation available

c binding resolution

d voluntary

e informal

f future relationships improved

g order is final

h win/win goal

i cheaper

j possibly greater payout

k enforceable decision

l parties reach own solution

m loser might pay costs

n power inequalities addressed

Advantages of ADR	Advantages of litigation

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Read the fictional case study and answer the questions below.

Case study: Fred

Fred suspected his neighbours would still be asleep. It was six in the morning, and they had a late night last night. Fred had been kept awake until 4am by their loud party, and he was feeling jittery and irritable. He had tried talking to his neighbour George about the noise on past occasions, without success. Now was the time to take action.

George's fat little dog barked most of the day; it had a high-pitched, hysterical bark that got on Fred's nerves. He wondered how it would like a bucket of cold water poured over it. It didn't like it much! Fred smiled. He was just warming up. He picked some rotten, maggot-infested apricots off the grass and slung them over the fence. It was only fair, the tree belonged to George. He'd asked George to prune the branches overhanging the fence, but George had refused. Fred managed to get several into the pool. Then he reached over the fence and broke off a large branch. He dropped it, narrowly missing the dog.

Fred looked around the yard, wondering what else he could do. Before he could decide, he heard his front gate open and angry footsteps pounding down the side of his house. Fred stopped smiling.

2 **List the main causes of complaint that Fred has against George.**

3 **a** **Identify a way that Fred should have tried to resolve these problems in the first instance.**

b **Had Fred attempted to do this, and was it successful?**

4 **Identify another solution that Fred could have considered regarding:**

a **the noisy night-time parties.**

b **the dog barking excessively during the day.**

c **the tree dropping fruit into his garden.**

5 **Would Fred and George's dispute be suitable for mediation? Explain your answer.**

6 **Would Fred and George's dispute be suitable for litigation? Explain your answer.**

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5 The civil court system

REMEMBER

Which court hears a civil case depends on the court's jurisdiction and its position in the court hierarchy. Some types of cases are heard in federal courts, rather than state courts.

1 **Name the lowest court in your state/territory.**

_____

2 **Name the intermediate-level court in your state/territory, if applicable.**

_____

3	The lowest courts in the hierarchy are known as Local or Magistrates courts, depending on the state/territory.	☐ True	☐ False
4	Intermediate level courts exist in all states and territories.	☐ True	☐ False
5	The Supreme Court is an intermediate level court.	☐ True	☐ False
6	Bankruptcy matters are heard in the federal, not state, courts.	☐ True	☐ False
7	A Queensland court can hear an appeal from a South Australian court.	☐ True	☐ False
8	The High Court can only hear appeals from federal courts.	☐ True	☐ False
9	The Federal Magistrates Court is lower on the hierarchy than the Federal Court.	☐ True	☐ False
10	The High Court is the highest court in the Australian legal system.	☐ True	☐ False

Case study: *Insight Vacations v Young* [2011] HCA 16

This real-life case dealt with an injury that occurred to a tourist. Mrs Young bought a European holiday package from the tour company Insight Vacations. While on the coach, Young stood up and got out of her seat. The coach braked suddenly. Young fell and was injured.

Young sued Insight Vacations. She claimed the tour company did not exercise adequate care and skill. The case was heard in the District Court of New South Wales. Insight Vacations pointed to a clause in the contract that said they were not responsible for injuries if the passenger was not wearing a safety belt. Young won the case and was awarded damages (a sum of money).

Insight Vacations appealed. The case went up the hierarchy to the Supreme Court of New South Wales, Court of Appeal division. The damages were reduced, but Insight Vacations were still held to be responsible. The tour company then appealed to the High Court.

The High Court held that the clause in the contract was not valid because it tried to remove consumers' rights, which are protected by law. The appeal failed.

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11 a Identify the court where the case was first heard.

b Is this a federal court or a state court?

c Outline the result of the first court hearing.

12 a Identify the court that heard Insight Vacation's first appeal.

b Would it have been possible for a court from a different state to have heard this appeal? Explain the reasons for your answer.

c Outline the result of the first appeal.

13 a Identify the court that heard the final appeal.

b Outline the result of the final appeal.

c Would it have been possible for another court to then hear an appeal from this court? Explain the reasons for your answer.

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6 Civil hearings

REMEMBER

Parties going to court may try to get more information out of each other, through discovery and interrogatories. This helps them to assess the strengths and weaknesses of their cases, and determine the extent of the evidence.

1 **Complete the passage using words from the word bank**

Word bank

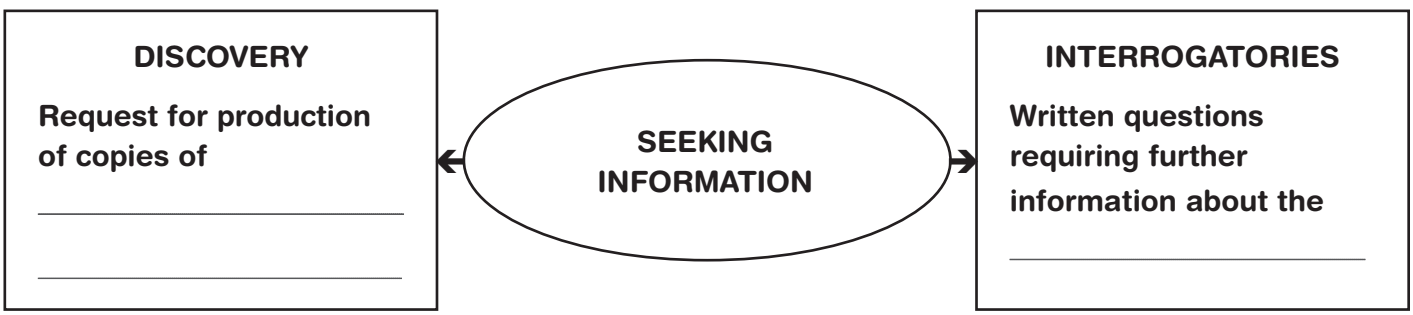
cross-examines burden introduces defence summarise
re-examine questioned binding closing civil

The procedures followed in _____ courts are very similar to those used for criminal cases. The opening addresses are made, where each side _____ their case. The plaintiff, who bears the _____ of proving the case, goes first.

The plaintiff's first witness is called and _____. The defence then _____ that witness, attempting to find weaknesses and cast doubt on the testimony. The plaintiff's lawyer may wish to _____ the witness, to clarify any points raised in cross-examination, but cannot raise new issues. This process is repeated for each plaintiff witness, then with each _____ witness.

After all the evidence has been given, both sides _____ and close their cases. The defence makes their _____ address last. The judge or magistrate (or jury, if involved) decides which party's case is most likely to be correct.
A _____ order will be made that settles the dispute.

2 **Complete the mind map below, which shows the difference between discovery and interrogatories.**



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3 For each statement in the table note whether it is true or false. If false, write the correct statement in the last column.

Statement	True or false?	Correct statement
a Discovery requests the production of documents relevant to the case.		
b Photographs and video recordings cannot be made the subject of discovery.		
c Interrogatories require written answers about the facts in issue.		
d It is impossible to get a court order requiring satisfactory answers to interrogatories.		
e Court procedures for civil cases are very different to those for criminal cases.		
f The defence bears the burden of proof.		
g The defence presents their opening address first.		
h The purpose of cross-examination is to cast doubt on the witness's testimony.		
i The purpose of re-examination is to clarify matters raised in cross-examination.		
j The case is decided on the balance of probabilities.		

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7 Enforcement of orders

REMEMBER

Court orders must be followed. If a debtor does not pay the owed damages, further steps can be taken to enforce compliance.

1 **Draw a line between the following actions in debt enforcement proceedings and their likely consequences.**

Action	Consequence
a The examination hearing finds insufficient assets	**i** Money deducted from debtor's wages and paid to creditor
b The court allows the debtor to pay by instalments	**ii** Enforcement action halts as long as instalments are being paid
c The bailiff seizes the debtor's assets	**iii** Creditor might abandon the debt
d An employer receives a garnishee order	**iv** Non-payment may lead to bankruptcy
e Bankruptcy proceedings are begun	**v** Assets are sold and used to pay creditor

2 **An examination notice seeks information about the debtor's financial situation.** ☐ True ☐ False

3 **An examination order is a court order requiring the creditor to answer questions and disclose documents.** ☐ True ☐ False

4 **A garnishee order may allow money to be taken directly from the debtor's wages.** ☐ True ☐ False

5 **A debtor's personal property cannot be taken and sold under any circumstances.** ☐ True ☐ False

6 **Bankruptcy proceedings can only be initiated if the debtor owes over $500 000.** ☐ True ☐ False

7 **Being permitted to pay off the debt in instalments might make it easier for the debtor to repay their debt.** ☐ True ☐ False

8 **Some creditors risk not being paid if the debtor is declared bankrupt.** ☐ True ☐ False

Case study: Rachel

Rachel leant $8000 to an old friend, Alicia, who lost her job and was in financial strife. They asked a lawyer to draft a simple contract for them. Under the contract, no interest would be payable, as Rachel claimed she did not want to profit from her friend's difficulties. The contract required Alicia to repay the total sum in 12 months.

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When the time came to repay the loan, Alicia said she was unable to pay. Rachel kept asking for it, but Alicia kept refusing. Their friendship crumbled. Eventually Rachel commenced action in the Small Claims Division of a Local Court. The magistrate passed judgment in Rachel's favour. Alicia nevertheless claimed that she was unable to pay the sum owed as she was still unemployed and had very few assets.

9 **Identify the term used to describe the sum of money owed now that the court has passed judgment.**

10 **Rachel decides to take further legal action against Alicia.**

a **Advise her what her first step should be.**

b **Outline the next step that Rachel could take if Alicia does not comply with this request.**

11 **Alicia discloses her financial situation and Rachel realises she really does not have the capacity to pay. Outline some realistic options for Rachel to consider.**

12 **Assume now that Alicia manages to get a job.**

a **Identify an order that Rachel can seek to help her get her money.**

b **Explain how this order works.**

13 **In your opinion, should Rachel have loaned the money to Alicia in the first place? Explain your answer.**

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8 Contracts

REMEMBER

Valid contracts must contain four elements: intention to be legally bound, offer, acceptance and consideration (payment for what is being promised).

1 If Rob offers to sell his fishing rod for $100 and John says he is prepared to pay $80, then John has:

a accepted the offer.

b rejected the offer.

c rejected an invitation to treat.

d made a counter offer.

2 Eddie offers to clean Cheryl's car but Cheryl does not have to do anything in return. This is not a contract because:

a it was not in writing.

b there was no consideration.

c Cheryl did not accept the offer.

d Eddie's offer was really an invitation to treat.

3 Kosta offers to drive Sally to the theatre. In return, Sally agrees to pay the parking fee. Sally's promise to pay the parking fee is:

a an indication of her acceptance.

b a counter-offer.

c consideration.

d a favour.

4 Complete the passage using words from the word bank.

If one party breaks the agreement, they are said to have _____ the contract. Depending on the circumstances and the terms of the _____, there are various remedies that may be sought. Damages refers to the payment of money to _____ for the breach. Damages attempt to put the innocent party back in the _____ they would have been in if there had been no breach.

The _____ party might seek an order compelling performance of the contract, known as specific _____. For a court to order this, damages would have to be _____ to rectify the situation. Alternatively, the innocent party might want to end or _____ the agreement. They may be able to do so if the breach was _____ enough, but not all breaches give rise to this right. They would need to _____ the other party to bring the contract to an end.

Word bank

terminate
contract
serious
inadequate
performance
innocent
notify
breached
position
compensate

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Case study: Joseph

Joseph and Harry are best mates. Joseph is thinking of selling his guitar and Harry wants to buy it. They agree on a price of $500 and shake hands. However, after doing some research, Joseph realises his guitar is rare and easily worth five times what they had agreed. Joseph decides to sell his guitar on eBay. He puts a reserve price of $2000 on the guitar and tells Harry he should bid if he is interested. Harry believes they had a valid contract for the original price of $500.

5 **Identify the offer.**

6 **Identify the consideration.**

7 **Discuss whether there was an intention between the parties to be legally bound by the agreement.**

8 **Assume there were no bids on eBay. Can Joseph insist that Harry honour their original agreement and give him $500 for the guitar? Explain the reasons for your answer.**

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9 Torts

REMEMBER

There are situations where people have legal duties in the absence of a contract, for example, in cases of negligence. For someone to be found negligent under tort law, they must have a prior duty of care.

1 Who owes whom a duty of care? Draw lines to match the entries in the columns.

Duty owed by	Duty owed to
a doctors	i employees
b drivers	ii clients
c dog owners	iii visitors
d solicitors	iv students
e goods supplier	v patients
f school authorities	vi community
g employers	vii purchaser
h home occupier	viii road users

Civil law crossword

2 Use your knowledge of the civil law to complete the crossword.

ACROSS

3 Non-written contracts are in this form

4 The person defending a civil action

6 An informal dispute resolution process using a neutral third party

7 Another word for court action

10 Another word for the breaking of a contract

11 Civil wrongdoing

17 Interference with the use or enjoyment of property

18 Remedy attempting to put the plaintiff back in the position they would have otherwise been in

19 Payment for what is being promised in a contract

22 A person who is owed money

23 Written and signed statement of facts

24 Can be enforced by law

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DOWN

1 Making up for loss or damage by the payment of money

2 An order refraining action from being taken

5 An order where money is taken from the debtor's employer and given to the creditor

8 Written questions requiring answers from the other party in a dispute

9 A sum of money owed

10 A person whose assets are taken and sold for the benefit of creditors

12 The person commencing civil action

13 Carelessness resulting in loss or damage

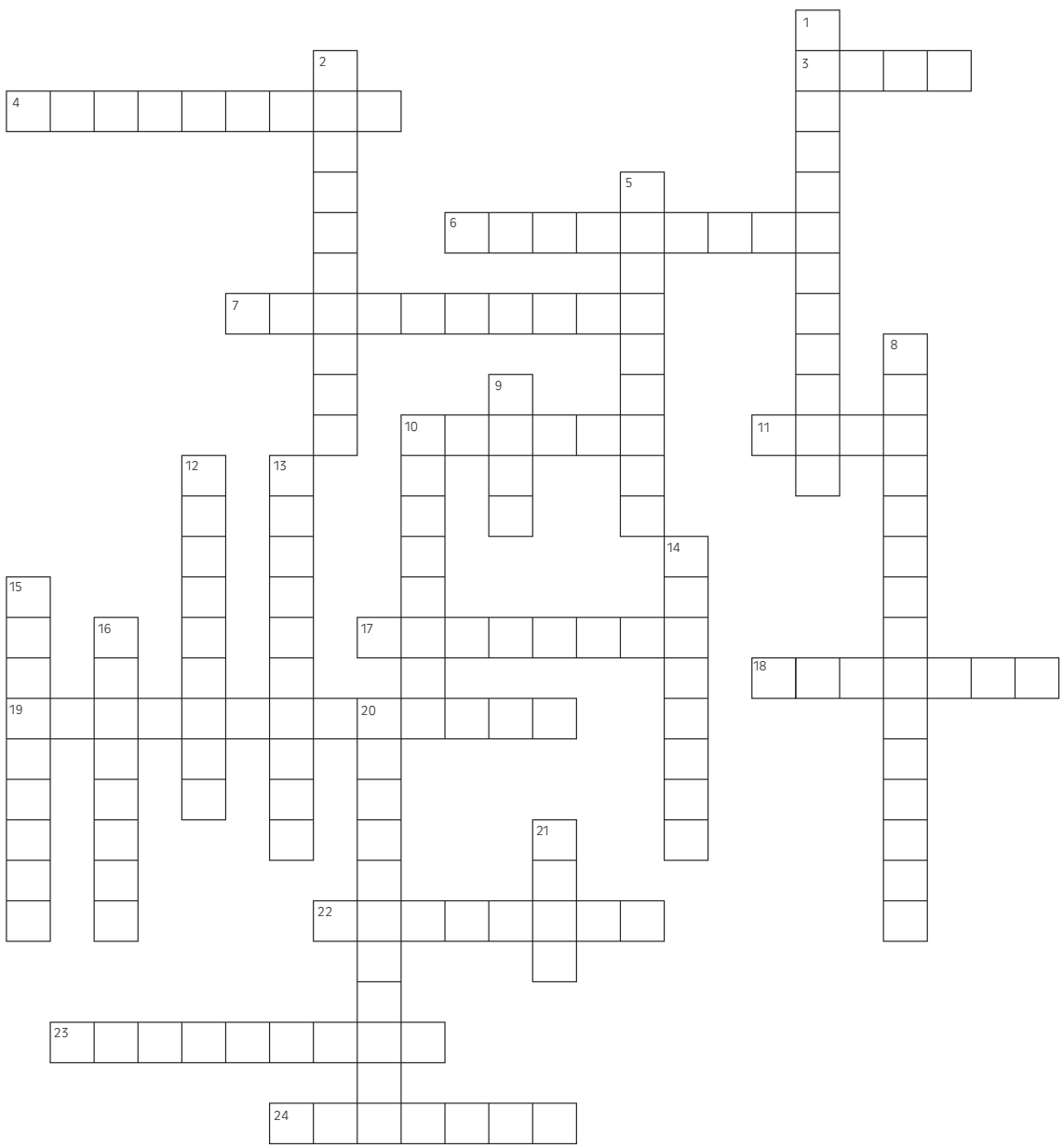
14 Unlawfully entering someone else's property

15 A party's request to view documents relevant to the case

16 A legally binding agreement

20 An alternative to court, often used in commercial and industrial disputes

21 Another word for legal responsibility



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10 Consumer protection

REMEMBER

In January 2011, the national Australian Consumer Law (ACL) came into operation, replacing the old state laws with national laws that include statutory guarantees.

1 **a** Define a good.

_____

b Give three examples of goods.

_____

2 **a** Define a service.

_____

b Give three examples of services.

_____

3 Some of the ACL statutory guarantees are listed below. Draw lines to match each guarantee with an example of a possible breach of the guarantee.

Statutory guarantees	Examples of breach
a Supplier has right to sell goods	**i** Fishing rod unsuited for purpose stated by consumer (e.g. deep-sea fishing)
b Goods are of acceptable quality	**ii** No spare parts for new oven
c Goods match their description	**iii** Attempt to sell a stolen electric guitar
d Goods fit for purpose stated by consumer	**iv** Kitchen not completed after one year
e Service carried out with due care and skill	**v** Kettle does not boil water
f Reasonable time for supply of service	**vi** Internet-ordered bag differs from photo
g Repair and spare parts reasonably available	**vii** Hairdresser burns client's hair

Safety

Consumer protection laws also relate to the safety of goods and product-related services. The ACL created national safety standards, which include mandatory safety and information standards, and the removal from sale (recall) of unsafe goods.

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4 Complete the passage using words from the word bank.

Mandatory safety standards are made for goods that are likely to be _____. Minimum requirements must be met that protect _____ from harm. The standards cover design, composition, _____, manufacture methods and packaging rules.

For goods that are not necessarily hazardous, mandatory _____ standards have been introduced to help consumers make informed choices; for example, _____ labelling is required for cosmetics and care labelling is required for _____.

Many safety standards in existence are _____, as opposed to mandatory. These are created by standards-making bodies, such as Standards _____. It is legal to supply products that do not meet voluntary safety standards, but mandatory standards can be _____ by law. Often voluntary standards end up being turned into _____ standards.

Word bank

voluntary
ingredient
consumers
Australia
mandatory
enforced
clothing
information
hazardous
performance

5 Visit the website of Product Safety Recalls Australia at http://www.recalls.gov.au/content/index.phtml/itemId/952401 or of the Food Standards authority at http://www.foodstandards.gov.au/consumerinformation/foodrecalls/archiveconsumerlevelrecalls/ Select a recalled product and fill in the Product Safety Recall Report table below.
Hint: You may need to click on the 'Further information' or 'Recall notice' links to get all the necessary details.

Name of recalled product	
Name of supplier	
Where was the product sold?	
Product description	
Date of recall notice	
The product's hazards and/or defects	
Advice given to consumers who purchased product	

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11 Consumer law remedies

REMEMBER

The Australian Consumer Law (ACL) offers remedies for breaking consumer laws. The ACL also prohibits misleading and deceptive content in advertising, but allows 'puffery'.

1 **a** **Should a consumer return faulty goods to the seller or the manufacturer?**

_____

b **Will the consumer be offered a refund, replacement or repair?**

_____

2 **Distinguish between misleading and deceptive conduct and puffery.**

_____

_____

_____

_____

3 **The following statements are taken from fictional advertisements for various products. Assume that in each case the statements are not true. Are the statements misleading and deceptive (i.e. outright lies) or mere puffs (i.e. sales patter)? Write them in the appropriate spaces in the table.**

a **Cleans whiter than white**

b **Made in Australia from local ingredients**

c **Was $500, now only $390**

d **Contains sodium hydroxide**

e **The freshest taste in town**

f **The block of land is 750 square metres**

g **You'll never need to diet again**

h **Impress girls with this new, manly cologne**

Misleading and deceptive	Puffery

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Case study: Chris

Chris Smith bought a new LED television from a store. It was on sale. Full of anticipation, Chris took it home and attached all the cables. The television did not work. Thinking that perhaps he had not connected it properly, Chris tried again but to no avail. He took the television back to the store. The sales assistant agreed it was faulty, but pointed to a sign reading 'No refund on sale items'. When Chris asked for a replacement, she told him that was the last one. She then tried to convince him to buy a far more expensive model that was not on sale.

4 **Identify the statutory guarantee that has been breached in this fictional case study.**
***Hint*: Refer to Unit 10: Consumer protection.**

5 **Signs claiming 'No refunds' or 'No refunds on sale items' are unlawful. Explain.**

6 **Would a sign claiming 'No refunds for change of mind purchases' also be unlawful? Explain the reasons for your answer.**

7 **You are Chris. Write a letter to the store manager requesting a refund. Be sure to include:**

- **a description of the product**
- **the date and place of purchase**
- **specific details about the problem**
- **what solution you are after.**

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12 Consumer credit

REMEMBER

Credit provided to Australian consumers is regulated by the National Consumer Credit Code. An individual who owes money is called a debtor.

Renegotiating the terms of the loan

Some types of credit contract can be varied if the debtor is suffering from financial hardship. The debtor can approach the credit provider and ask to renegotiate the terms of the loan. The debtor can ask to extend the length of the loan and postpone repayment dates, or reduce the amount of each repayment. The loan still needs to be repaid, but it will be easier for the debtor to meet the repayments.

Under the National Consumer Credit Code, the credit provider must reply to the debtor's request in writing within 21 days. If the provider does not agree to the request, they have to give reasons. They also need to name their External Dispute Resolution (EDR) scheme and explain the debtor's rights under that scheme. All credit providers must belong to an EDR scheme.

1 **Identify two reasons why a debtor may suddenly face financial hardship.**

2 **Discuss the possible consequences that may arise if a debtor facing financial hardship is unable to renegotiate their contract.**

3 **You are over 18 years old and have borrowed $20 000 from Bigg Bank to buy a new car. So far you have repaid $5000, in accordance with the repayment schedule. However, you recently lost your job and cannot afford your repayments. Write a letter to the bank manager, Ms Bigg, asking to renegotiate the terms of your loan. Suggest an alternative repayment schedule. Be persuasive!**

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External Dispute Resolution schemes

The Australian Securities and Investment Commission (ASIC) administers the National Consumer Credit Code. There are currently two ASIC-approved EDR schemes. They are described on ASIC's website at http://www.asic.gov.au/asic/asic.nsf/byheadline/ASIC+approved+external+complaints+resolution+schemes.

4 a Name the first of the two EDR schemes identified on the website.

b List six of the named types of credit providers that are dealt with by this scheme.

5 a Name the second of the two EDR schemes identified on the website.

b List six of the named types of credit providers that are dealt with by this scheme.

6 a Some overlaps exist in the types of credit providers that can be dealt with by the two schemes. Identify two types of providers that can be covered by both schemes.

b There are also some types of credit providers that can only be covered by one or the other of the schemes. Identify two types of major lenders that this applies to.

7 The EDR schemes require that the consumer initially try to resolve the problem directly with the credit provider. Explain why this is the case.

8 The schemes try to encourage the parties to reach an agreement. Describe what may happen if the parties cannot reach an agreement.

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13 Legal requirements of marriage

REMEMBER

The Marriage Act 1961 *(Cth) sets out the requirements for a marriage to be valid. It also states the conditions under which a marriage is void.*

Consent to marry

The *Marriage Act 1961* (Cth) outlines circumstances where consent to a marriage may not be considered real. These are:

- **where consent was forced**
- **where consent was obtained by fraud**
- **the party was mistaken as to the identity of the person they were marrying**
- **the party was mistaken as to the nature of the wedding ceremony**
- **the party did not have the mental capacity to understand the nature and consequences of the wedding ceremony.**

1 **Apart from the issue of appropriate consent, the *Marriage Act 1961* gives three requirements for a marriage to be valid. List them.**

_____

_____

_____

Case study: Alexandra

Alexandra was in a relationship with Robert. She liked him very much but did not feel ready to settle down with anybody just yet. When they discovered she was pregnant, Robert proposed. Alexandra was not ready for marriage and did not think Robert was the right person for her. However, she was afraid she would not be able to support herself and her baby, so she agreed to the marriage.

2 **a** **Identify which of the circumstances outlined in the Act is in issue here.**

_____

b **Was Alexandra's consent to the marriage real or not real? Give reasons for your answer.**

_____

_____

_____

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Case study: Sanjit

Sanjit was born in Australia, and his Indian immigrant parents raised him according to the customs of their birth culture. Sanjit had dated several girls of different nationalities but showed no signs of settling down. When he turned 30, his parents arranged for an 18-year-old girl from their village to come to Australia to marry Sanjit. He had never met her before. Sanjit was not happy but went along with his parents' decision. He did not want to upset them, and none of the girls he had previously dated had been right for him anyway.

3 a Identify which of the circumstances outlined in the Act is in issue here.

b Was Sanjit's consent to the marriage real or not real? Give reasons for your answer.

Case study: Changying

Changying grew up in a rural Chinese community. She had little contact with the Western world and knew little of its traditions. Her parents were poor, but had relatives living in Australia. The relatives offered to bring the 19 year old to Australia, where they would help her find work and obtain citizenship. Not long after Changying arrived in Australia, she attended a civil marriage ceremony, where she was married to her 44-year-old cousin. Changying was told it was a citizenship ceremony and did not realise she was married until later. She was distraught and wanted to go back home.

4 a Is it legally permitted for cousins to marry under Australian law?

b Identify two circumstances outlined in the Act regarding consent that are in issue here.

c Was Changying's consent to the marriage real or not real? Give reasons for your answer.

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14 Family breakdown

REMEMBER

No-fault divorce was introduced in Australia in 1975. If a couple has children, they may need to make a parenting plan before a divorce will be granted.

1 The grounds for divorce are:

- **a** the proof of fault, such as cruelty or adultery.
- **b** irretrievable breakdown of the marriage.
- **c** the creation of a parenting plan.
- **d** there are no grounds for divorce.

2 Irretrievable breakdown of a marriage is demonstrated by:

- **a** continual arguments.
- **b** not being in love anymore.
- **c** the couple living separately for at least 12 months.
- **d** seeing other people.

3 Parents cannot divorce until:

- **a** both ex-partners agree to the divorce.
- **b** arrangements are made for the care of the children.
- **c** they visit a family dispute resolution practitioner.
- **d** one side establishes fault by the other.

4 Parenting plans can cover:

- **a** who the children will live with.
- **b** the amount of time the children will spend with each parent.
- **c** how parental responsibility and decision-making will be shared.
- **d** All of the above.

5 When making a parenting order, the court's primary consideration is:

- **a** the parents' legal rights.
- **b** who will be the better parent.
- **c** the best interests of the children.
- **d** All of the above.

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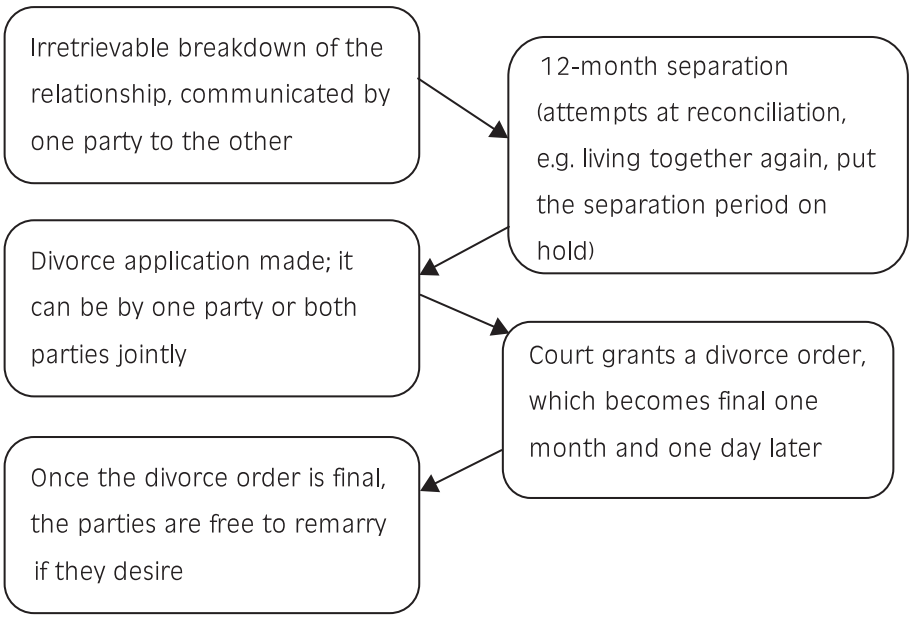
The divorce process



6 **Distinguish between at-fault divorce and no-fault divorce.**

7 **One rationale for no-fault divorce is that the law should not force people to stay together if they do not want to. Do you agree? Explain your reasons.**

8 **Another rationale for no-fault divorce is that the law should reflect society's changing attitudes, rather than try to impose morals on it.**

a **Do you believe the law should impose morals on society, or should the law be neutral with regard to splitting couples? Explain the reasons for your answer.**

b **If the law's role is to impose morals, whose morals should be imposed?**

c **If the law's role is not the imposition of morals, what should its role be in family law matters? Discuss.**

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15 Definition of an employee

REMEMBER

The law makes a distinction between employees and independent contractors. Employees are covered by workplace laws governing matters such as annual leave, sick pay and termination of employment; contractors are not.

1 **The following table outlines some of the general differences between employees and independent contractors. Fill in the blanks. (*Note:* These are generalisations only and exceptions always exist!)**

	Employee	Independent contractor
a Control	Employer may specify how task is to be performed	
b Equipment and place of work	Employer usually provides equipment and work is carried out on employer's premises	
c Hours of work		May be determined by contractor
d Leave entitlements	Entitled to sick leave, annual leave, long service leave	
e Payment method		Invoices for tasks performed
f Income tax		Not deducted from payment
g Right to refuse work		Not obliged to accept new offers of work that have not been contracted for yet
h Ability to accept other work	Only work for one employer during the set business hours	
i Business risk		Carries own risk of business failure

Case study: Rania

Rania writes magazine articles. She works at a publisher's offices and uses the publisher's computer, stationery and other items. She works nine to five every weekday and never takes work home with her. She is not permitted to write for other publications. Her editor assigns articles for her to write, but Rania decides how to write them and what material to include. Rania is paid a regular salary minus deductions for income taxation. Rania is entitled to four weeks' paid annual leave per year plus eight days' paid sick leave per year.

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2 **Is Rania most likely to be an employee or an independent contractor? Give six reasons for your answer.**

Case study: Connie

Connie writes magazine articles. She works from home on a notebook computer she bought herself. She has two young children and finds it hard to work regular business hours, so she schedules her time around her children's needs. Connie writes for several magazines. Sometimes she sends in article suggestions, which the editors then either accept or reject. More often, however, she is approached by an editor and asked to write a particular article. Connie submits invoices with her articles.

3 **Is Connie most likely to be an employee or an independent contractor? Give four reasons for your answer.**

Case study: Philip

Philip is a proof reader. His work involves reading manuscripts the publisher provides and correcting grammatical and spelling mistakes. He works at the publisher's premises and uses the publisher's computers and other equipment. He works from nine to five every weekday and does not take work home with him. Philip only works for one publisher. He does not have his own desk at work – rather, there is a pool of desks that he shares with others who perform similar work. Philip is paid by the hour. He is not paid for his lunch break and receives no sick pay or annual leave. At the end of each week Philip submits an invoice outlining the number of hours he worked and which products he worked on. The publisher does not deduct income tax from his pay.

4 **a** **Distinguish between the issues that suggest Philip is an employee and those that suggest he is an independent contractor.**

b **Decide which he is most likely to be. Explain your answer.**

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16 Unfair dismissal

REMEMBER

The unfair dismissal provisions under the* Fair Work Act 2009 *(Cth) apply to many Australian employees. Fair Work Australia, the national workplace relations tribunal, provides remedies for unfair dismissal.

1 **Write your own definition for 'employee'.**

_____

2 **List reasons why a dismissal may be deemed unfair.**

_____

_____

3 **Give two remedies for unfair dismissal.**

_____

_____

4 **The *Fair Work Act 2009* does not apply to contractors or to people employed in a particular job less than one year.** ☐ True ☐ False

5 **Under the national laws, a dismissal may be unfair if it was harsh, unjust or unexpected.** ☐ True ☐ False

6 **Genuine redundancy means the job no longer needs to be performed by anyone.** ☐ True ☐ False

7 **The remedy for unfair dismissal always includes reinstatement.** ☐ True ☐ False

Case study: *Russell v Dyers Gippsland Transport* [2009] FWA 887

This real-life case involved an application for a remedy under the *Fair Work Act 2009* (Cth). Mr Russell, an employee, claimed his dismissal from his job was unfair because it was harsh, unjust or unreasonable.

Russell was a truck driver, and his job involved driving groceries to supermarkets. He held the job for about one-and-a-half years. On the day he was dismissed, he had been driving through very bad weather. Mr Rendall, who also worked for the company, noticed that the truck had been damaged and that Russell had not reported it, which he was obliged to do. Russell stated the damage was caused by a tree. He said he was about to report the damage, but Rendall did not believe him. The employer decided to terminate Russell's employment immediately. Russell had previously received two written warnings.

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Russell claimed his termination was unfair because it was not his fault the damage occurred, as the employer sent him down residential streets with trees. He also claimed he was not given the opportunity to respond to the problem before he was dismissed. The employer noted that Russell's damage record was several times higher than anyone else, suggesting he had problems performing the job properly. The employer also stated that all Russell had to do was report the damage – he was not personally responsible for fixing it.

The tribunal agreed with the company, noting Russell's high damage rate and prior warnings. It noted that although he should have been given a chance to respond on that day, it would not have altered the outcome even if he had a greater chance to defend himself.

8 **Was Russell's application for a remedy for unfair dismissal accepted or rejected by the tribunal?**

9 **a** **How long had Russell been employed by the company at the time he was dismissed?**

b **Would his ability to seek a remedy be different if he had held the job for under one year? Explain.**

10 **List three matters that Fair Work Australia will consider when deciding whether a dismissal was unfair.**

11 **a** **Which of the three matters listed in Question 10 had not been properly satisfied in this case?**

b **The tribunal noted that even if Russell had been given that opportunity, it would have made no difference. Do you agree with the tribunal's approach? Give reasons for your answer.**

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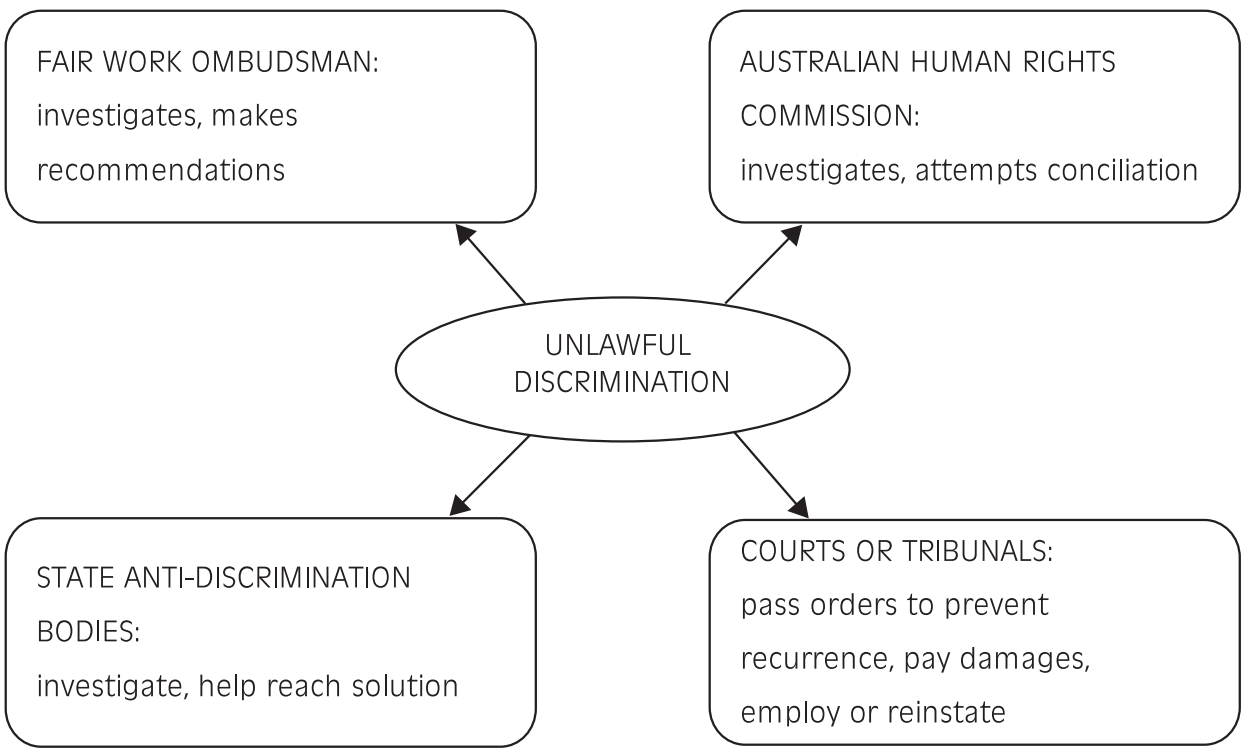
17 Discrimination in the workplace

REMEMBER

Federal and state laws throughout Australia prohibit discrimination in the workplace. Discrimination can be either direct or indirect.

Discrimination complaints

If a person has been unlawfully discriminated against in the workplace, there are various avenues they can take, as shown in the diagram below. Anti-discrimination and/or rights bodies can investigate the complaint. Both sides will be listened to. Conciliation, which involves discussing the problem with a view to the parties reaching their own solution, may be attempted. Generally, it is only if these methods fail that a party will approach a court, as such action is stressful, time-consuming and expensive.



1 **Discrimination in the workplace on any ground or matter is unlawful.** ☐ True ☐ False

2 **In Australia, anti-discrimination laws exist at the federal level only.** ☐ True ☐ False

3 **A matter may not amount to unlawful discrimination if it is an inherent feature of the job.** ☐ True ☐ False

4 **Advertising for a person of a specific ethnic background to work in an ethnic-specific food restaurant is unlawful.** ☐ True ☐ False

5 **Indirect discrimination is not unlawful because the action appears to apply to everyone equally.** ☐ True ☐ False

6 **Requiring all employees to be fluent in English when this is not necessary for the job is an example of indirect discrimination.** ☐ True ☐ False

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7 If a person has been discriminated against, they should immediately commence court action. ☐ True ☐ False

8 It is generally wise to attempt to raise complaints of discrimination with the person involved before taking more formal steps. ☐ True ☐ False

9 Only courts and tribunals can pass orders that must be followed by the parties in dispute. ☐ True ☐ False

10 Outline the advantages and disadvantages of courts in the area of anti-discrimination.

11 Workplace discrimination on the grounds of obesity is currently not unlawful in Australia. Consider the debate topic: 'Obese people are, in fact, discriminated against in the workplace and this should be made unlawful.' Choose one side of the argument, and write your points in the space below. Compare your notes with a class member who has taken the opposing view.

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18 Renting a home

REMEMBER

The rights and duties of a tenant and landlord are governed by the residential tenancy agreement.

1 **The following rights and duties belong to landlords and tenants. Write them in the correct columns in the table.**

- **a** **Keep the premises reasonably clean**
- **b** **Keep the premises in a reasonable state of repair**
- **c** **Quiet enjoyment of the property**
- **d** **Not damage the property**
- **e** **Inspect the premises**
- **f** **Give correct notice of rent increases**
- **g** **Not make alterations without consent**
- **h** **Be reimbursed for damage caused by occupants or their guests**
- **i** **Be paid rent on time**
- **j** **Have reasonable locks and security**
- **k** **Give correct notice if wanting to sell the house**
- **l** **Not use premises for illegal purposes**

Tenant rights	Tenant duties	Landlord rights	Landlord duties

Case study: Chloe

Chloe rented a small home in a quiet suburb. It was built in the 1950s and showed the odd signs of wear and tear. A few of the bathroom tiles were cracked, the carpet was worn and the paint was blistered and peeling in the bedrooms. Other than that, the house was in reasonable condition. Chloe lived there with her two young children.

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One day a water pipe burst in the kitchen. Chloe and her children were out at the time. When they returned home they discovered the place was flooded. The carpets were saturated. Water was still flowing. Chloe immediately turned off the stop cock and then called the agent. She reported the damage and the agent agreed to send out a plumber. Chloe waited for two days but the plumber did not turn up. She had no water and could not flush the toilets. She had called the agent several times and he kept assuring her that the plumber would arrive. Finally, Chloe got sick of waiting. She called a plumber herself and had the pipe fixed. She paid the plumber with her own money.

2 **Identify whose responsibility is it to maintain the premises and keep them in a reasonable state of repair.**

3 **a** **In your opinion, does a burst water pipe require an emergency repair, or is it the sort of repair that can wait?**

b **Do you think being made to wait two days to repair the pipe is reasonable? Explain.**

4 **Chloe tried to claim the plumber's bill back from the landlord, but he refused to pay. Identify who is responsible. Give reasons for your answer.**

5 **The landlord inspected the damage and decided to replace the carpets. He stated Chloe should pay for the new carpets, claiming it was her fault the old ones were ruined. Do you agree with the landlord? Give reasons for your answer.**

6 **Chloe is sick of battling with the landlord and decides to leave. She gives the correct notice period and finds a new home. When she leaves the agent informs her that she will lose her bond.**

a **Identify the circumstances under which a tenant may lose a bond.**

b **Do you think Chloe is entitled to get her bond back? Explain.**

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19 Purchasing a home

REMEMBER

Homes are usually placed on the market by real estate agents, but they can be put on the market by the vendor (seller).

1 **Conveyancing involves the transfer of title:**

- **a** **from the vendor to the purchaser.**
- **b** **from the purchaser to the vendor.**
- **c** **from the seller to the real estate agent.**
- **d** **from the vendor to the seller.**

2 **A private sale is:**

- **a** **a sale that is not advertised.**
- **b** **a sale where there are no open house inspections.**
- **c** **a sale made directly by the vendor without the use of a real estate agent.**
- **d** **not an auction.**

3 **A cooling-off period:**

- **a** **gives the vendor a few days in which to change their mind.**
- **b** **gives the purchaser a few days in which to change their mind.**
- **c** **gives both parties a few days in which to change their minds.**
- **d** **does not apply to the sale of land.**

Case study: *Corban v Levett* [1996] NSWSC 509

In this real-life case, Mr Corban owned a property in a suburb of Wollongong, New South Wales. He claimed he had entered into an agreement to sell the property to Mr and Mrs Levett, who said no such agreement existed. The Supreme Court of New South Wales agreed with the Levetts. Corban then appealed to the Supreme Court's Court of Appeal division.

The facts of the case are these. Corban engaged a real estate agent to sell the property. The agent negotiated with the Levetts, who were interested in purchasing. They agreed on a price of $200 000. They also discussed work that needed to be done on the property by Corban before the sale. Corban did in fact later carry out this work. The Levetts gave the agent a $20 000 cheque for the deposit, 'subject to contract'. This meant the money would only be released to the seller once contracts were signed and exchanged, which never happened.

Corban claimed they had an oral (unwritten) agreement to enter into a formal, written agreement for the sale of the property. Corban sought damages and specific performance (an order requiring the other party to perform the contract).

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The Court of Appeal did not agree with Corban. The judges stated that paying the deposit 'subject to contract' meant the money was given in expectation of a future contract being entered. It did not in itself amount to a contract. The court noted that contracts for the sale of property are normally in writing because the process is complex and covers issues that cannot generally be covered in oral negotiations.

The appeal was dismissed.

4 **This real-life case gives an example of disputes that can arise concerning the sale of land. Outline Corban's side of the story.**

5 **a** **Explain how specific performance might be applied in this case.**

b **Explain how damages might be applied in this case.**

6 **Outline the Levetts' side of the story.**

7 **Identify the court that heard the appeal.**

8 **a** **Did Corban win his appeal?**

b **Outline the court's reasoning for its decision.**

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20 Mock civil hearing

Now it is time to bring civil law to life by running a mock hearing. Read the following preparatory material and refamiliarise yourself with earlier material, especially Unit 6: Civil hearings and Unit 9: Torts. This is a negligence case. The purpose is to determine whether the plaintiff is entitled to damages and, if so, how much.

Roles

Judge

Presides over the court, decides matters of law and rules on the evidence.

Played by: _____

Judge's associate

The judge's assistant. Keeps lists of objections made by barristers, as well as the judge's responses to the objections.

Played by: _____

Court officer

Opens and closes court, maintains order. Calls witnesses and administers the oath or affirmation. For example, the witness might say 'I swear by Almighty God that the evidence I give will be the truth, the whole truth, and nothing but the truth'. An affirmation is similar but without the religious reference, and can begin 'I solemnly and sincerely declare and affirm that ...'.

Also passes any relevant documents from barristers to the judge's associate.

Played by: _____

Court reporter

Records proceedings, reads back transcript if required.

Played by: _____

Jurors

Decide matters of fact. Their use in civil hearings varies between states and they would often not be used in such cases. There should be 4–6 jurors for the mock hearing.

Played by (4-6 people): _____

_____

_____

_____

Barristers

Present their clients' cases. Make opening addresses, question witnesses and argue relevant points of law.

Barrister for plaintiff played by: _____

Barrister for defendant played by: _____

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Solicitors

Assist the barristers in preparing their cases. Sit near barristers at bar table and take notes of the proceedings. May help barristers by pointing out relevant matters during the hearing.

Solicitor for plaintiff played by: _____

Solicitor for defendant played by: _____

Plaintiff

The person commencing the action.

Mabel played by: _____

Defendant

The person defending the action – in this case, a representative of the local council.

Saunders played by: _____

Witnesses

Should study the witness statements produced in these pages and answer questions accordingly, as far as possible. If necessary, witnesses can make up ancillary details but should try not to contradict the given material. Witnesses cannot give their opinions, unless they are experts (e.g. doctors).

John played by: _____

Alice played by: _____

Dr Wong played by: _____

Case summary

Mabel, a 78 year old, was walking down the street with her grandson John, aged 19. They were talking and looking at each other as they walked. The street was lined with very large trees. In some places, tree roots had lifted up sections of the footpath, making it uneven. The local council had commenced work to repair the footpath. In one place, the council had cut the path into sections, leaving two unstable pieces of concrete. Mabel caught her shoe in the gap and lost her balance. John was unable to catch her in time. Mabel fell heavily and fractured her hip, thigh and elbow. She is suing the local council for damages, including her medical bills, the cost of nursing home care, loss of enjoyment of life and pain and suffering.

Damages claim

Assume Mabel is claiming the following sums. They are not necessarily realistic figures.

- **Hospitalisation and doctors' fees: $10 000**
- **Ongoing care expenses: $45 000**
- **Nursing home accommodation bond: $200 000**
- **Pain and suffering: $300 000.**

The council will be trying to reduce how much they pay if the plaintiff wins.

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Witness statements

Mabel

I was fairly active until that day. I lived alone and was able to look after myself. Now I am in respite care in a nursing home, and I have been told I have to stay permanently. I don't like where I am staying, but I don't want to move in with my children and become a burden. I am unable to care for myself and I am in constant pain. I take painkillers but they make me feel dizzy and nauseous. I have lost all enjoyment of life and I sometimes wish I could just die. My medical bills are very high and I am worried about the costs of nursing home accommodation. I might have to sell my home to get into a nursing home that I like.

Saunders, a local council representative

The council admits to having created the danger, but it was an obvious danger. Councils do not have a duty to warn of obvious dangers. Contributory negligence is an issue [meaning the plaintiff's carelessness is partly or wholly to blame for the injury]. She was not looking where she was going and her shoes were slippery. She was at least partly to blame for her injury, if not entirely.

John

The danger was not obvious to us. People can't be expected to watch their feet all the time. It was a bright sunny day but we did not notice anything. The council created the danger and should have either put up warning signs or a protective barrier. Nan and I have often walked down that street, and we did not expect to suddenly encounter such a problem.

Alice (called as a witness for the defence)

I was walking behind Mabel and her grandson just before she fell. I noticed the gap in the footpath and was about to call out a warning. It was clear that they hadn't seen it; I think they were too busy chatting. I was too late, however. I ran over when Mabel fell. I rang the ambulance while her grandson comforted her. I could tell the old lady was in extreme pain.

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Dr Wong

I am Mabel's GP. It is my opinion that Mabel will never be able to live independently again. She needs constant care and a nursing home is the best place for her. Her condition is such that she will suffer chronic pain for the rest of her life. I believe her lifespan will be much shorter than it would otherwise have been. Mabel is suffering from depression brought on by her accident and has expressed a wish to die.

Courtroom tips

Tip 1: Court etiquette

Court etiquette requires that everybody stands when the judge enters or leaves the room. People entering or leaving the courtroom should bow to the judge's bench as a mark of respect. Judges are referred to as 'Your Honour' and lawyers should stand while addressing the judge. Barristers should not argue with the judge. They can say 'With respect, I submit that …', but when a judge passes a ruling it must be accepted. An appropriate phrase is 'If your Honour pleases'. Unlike in US courtroom dramas, Australian lawyers remain behind the bar table. They do not stride around or approach the witness stand. Lawyers refer to other lawyers as 'my learned friend'.

Tip 2: The art of cross-examination

The purpose of cross-examination is to challenge a witness's evidence with a view to discrediting them. Although leading questions (questions that suggest their own answer) are not permitted in examination-in-chief, they are often used in cross-examinations. It is a rule among barristers never to ask a question in cross-examination that they do not know the answer to, as they might not get the answer they want. Once they have the information desired, they should stop asking questions and not give the witness the opportunity to continue talking. Demanding 'yes' or 'no' answers is acceptable, although the judge may allow the witness to explain themselves more fully.

Tip 3: Hostile witnesses

Barristers cannot ordinarily cross-examine their own witnesses. But if a witness gives evidence that favours the other side or contradicts evidence in their previous written statements, the barrister can try to have them declared hostile and is then able to cross-examine the witness.

Steps to take

1. **Divide into small groups and allocate roles.**
2. **Arrange the room so that it looks like a courtroom.**
3. **Ensure everyone knows their role or character story.**
4. **The barrister for the plaintiff opens their case, then calls their first witness.**
5. **The witness is questioned by the plaintiff's barrister, then by the defendant's barrister.**
6. **This is repeated for each of the plaintiff's witnesses.**
7. **The barrister for the defence opens their case and calls their first witness.**
8. **Each witness is questioned by the defence barrister, then by the plaintiff's barrister.**
9. **The judge sums up then reaches a conclusion with the help of the jury (if there is one).**
10. **The judge makes their decision, passes an order and explains it to the class.**

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Selected answers

1 What is civil law?

1 Civil law terms: compensation, plaintiff, sue, damages, balance of probabilities. Criminal law terms: punishment, prosecution, guilty, fines, beyond reasonable doubt. Criminal and civil law terms: defendant, evidence, appeal, juries, standard of proof. **2 a** criminal **b** plaintiff **c** defendant **3** Contracts are based on legally binding agreements, while liability in tort is not necessarily based on any prior agreement. **4** Proceedings are initiated by an individual in civil law but by the state in criminal law; criminal cases can lead to punishment, while civil cases aim for compensation. **5 a** The burden of proof refers to which party bears the responsibility for establishing their case to the court's satisfaction. **b** It is the plaintiff who alleged the wrongdoing took place, so it is up to them to prove that it actually happened. **6** The standard of proof refers to how convinced the court must be that the plaintiff has proved their case. **7 a** On the balance of probabilities. **b** The court must decide whose story is most likely to be correct. **8 a** Beyond reasonable doubt. **b** Higher. **c** The consequences for criminal cases are more severe than for civil cases. For instance, criminal cases might lead to imprisonment.

2 Overlaps with the criminal law

1 a The police **b** No, it is up to the police not the victim to decide whether to prosecute. **2** Beyond reasonable doubt. **3 a** Franca **b** On the balance of probabilities. **c** Yes, because the standard of proof is lower for civil cases. **4** Loss of income, medical expenses, counselling expenses, pain and suffering. **5** Alex's financial situation will be investigated. If he can afford to pay he will be ordered to do so. If he really cannot, then Franca will find it very hard to get her money. **6** What the difference in the payout was likely to be; whether Alex could afford to pay; whether she could handle the stress and expense of a civil court case; whether she is prepared to risk losing a civil case, in which case she might be ordered to pay Alex's costs. **7 a** *Examples:* Speeding, going through stop sign, careless driving, dangerous driving, driving while intoxicated, using a mobile phone while driving. **b** Claim for property damage, claim for personal injury **c** Separately – although based on the same set of events, they are actually separate cases that will follow their own separate proceedings **d** Yes, due to insurance. Most drivers have third-party property insurance, and third party insurance (which covers injury) is compulsory.

3 Civil law remedies

1 false **2** true **3** false **4** false **5 b** Make up for loss suffered; plaintiff; Personal injury, property damage, financial loss **c** Refrain certain action from being taken; plaintiff; Trespass **d** The losing side is required to pay the winner's costs; the winning party; When a party has won the case and wants to claim back their costs **6 a** Damages for breach of contract **b** To put her back in the position she would have been in if the sale to Evan had gone through. **7 a** Clare should receive the difference between the sale price with Evan ($900 000) and the final sale price of $700 000 – that is, $200 000 – minus the $90 000 deposit that Evan had already paid. Thus she should be paid $110 000. **b** Advertising costs and auction costs, as well as costs in maintaining and insuring the property. She might have also incurred costs if she were simultaneously buying another house and had to take out an expensive bridging loan to cover the shortfall. **8** Plaintiffs must take reasonable steps to reduce or minimise the loss that they suffered, rather than just sitting back and letting things get worse. **9 a** Clare might have let the condition of the property deteriorate. She might have put less effort into presentation. She might have rented it out to tenants who caused damage. She might have let it sit on the market too long, which some buyers see as a bad sign. **b** The court would probably consider what the house should have sold for if she had taken proper care, and use that as the basis for their calculation. **10** No – it is unlikely to have been awarded as damages would adequately compensate her for her financial loss.

4 Keeping it out of court

1 Advantages of ADR: a, d, e, f, h, i, l. Advantages of litigation: b, c, g, j, k, m, n. **2** Noisy parties at night; dog barking during the day; fruit tree overlapping into his garden. **3 a** He should have tried to discuss the issues with George. **b** He had tried, but had not succeeded. **4 a** Fred could have called the police. **b** Fred could have made a complaint with the local council. **c** Fred is permitted by law to cut the branches off at his boundary line as long as he does not damage the tree. **5** Yes. The problem appears to be based on resentment and the failure to communicate properly. A mediator would help the parties discuss their grievances in a safe setting and come up with a solution that satisfies both. **6** No. It would worsen the relationship, but Fred and George would have to continue to live next to each other. It would be too expensive and stressful. Also, courts do not like trivial matters being brought before them.

5 The civil court system

1 Local Court: NSW, NT. Magistrates Court: Remainder **2** None in ACT, NT, Tasmania; County Court: Victoria. District Court: Remainder **3** true **4** false **5** false **6** true **7** false **8** false **9** true **10** true **11 a** The District Court of New South Wales. **b** This is a state court. **c** Mrs Young won the case and was awarded damages. **12 a** The Supreme Court of New South Wales, Court of Appeal division. **b** No. Appeal courts can only operate in their own state's hierarchy system. **c** The damages were reduced, but the tour company was still responsible for the injuries. **13 a** The High Court of Australia. **b** The appeal failed. The High Court said the clause was not valid because it tried to remove consumers' rights, which are protected by the law. **c** No. The High Court is the highest appeal court in Australia.

6 Civil hearings

1 civil; introduces; burden; questioned; cross-examines; re-examine; defence; summarise; closing; binding **2** Discovery: relevant documents; Interrogatories: facts in issue **3 a** True **b** False; Photographs and video recordings can be made the subject of discovery. **c** True **d** False; It may be possible to get a court order requiring satisfactory

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answers to interrogatories. **e** False; Court procedures for civil cases are very similar to those for criminal cases. **f** False; The plaintiff bears the burden of proof. **g** False; The plaintiff presents their opening address first. **h** True **i** True **j** True

7 Enforcement of orders

1 a iii **b** ii **c** v **d** i **e** iv **2** true **3** false **4** true **5** false **6** false **7** true **8** true **9** Judgment debt **10 a** Rachel should complete an examination notice, requesting details of Alicia's financial situation. **b** If Alicia does not comply, Rachel could apply for an examination order, which is a court order requiring Alicia comes to court to answer questions and show documents regarding her financial position. **11** They could enter into a new contract, setting the payment for a future date. Rachel could try to add an interest component to help make up for money that she has already lost by the non-payment. Rachel could wait until Alicia gets a job, and then take further action to recover her debt. **12 a** Garnishee order **b** It is an order to the employer to deduct money from Alicia's wages and pay it to Rachel. Limits exist on how much can be deducted at any one time. **13** *Student opinion*

8 Contracts

1 d **2** b **3** c **4** breached; contract; compensate; position; innocent; performance; inadequate; terminate; serious; notify **5** Joseph offered to sell his guitar to Harry for $500. **6** The consideration was the sum of $500 to be paid by Harry. **7** As the parties were friends, there is a presumption that they did not intend to be legally bound. However, they shook hands on the deal. This could imply that such an intention did exist, but it would not be certain. Intention would be hard to prove. **8** Probably not. First, there was probably no intention to make the agreement legally binding, meaning it was not a valid contract in the first place. Even if it was, Joseph breached it by changing his mind and trying to sell his guitar for a better price elsewhere.

9 Torts

1 a v **b** viii **c** vi **d** ii **e** vii **f** iv **g** i **h** iii **2** ACROSS: 3 oral; 4 defendant; 6 mediation; 7 litigation; 10 breach; 11 tort; 17 nuisance; 18 damages; 19 consideration; 22 creditor; 23 affidavit; 24 binding. DOWN: 1 compensation; 2 injunction; 5 garnishee; 8 interrogatories; 9 debt; 10 bankrupt; 12 plaintiff; 13 negligence; 14 trespass; 15 discovery; 16 contract; 20 arbitration; 21 duty.

10 Consumer protection

1 a A product that can be bought and sold **b** *Suggestions:* computers, food, furniture, clothes, jewellery, cutlery, clocks, etc. **2** A performance of work, provision of entertainment or instruction **b** *Suggestions:* gardening, cleaning, cooking, hairdressing, teaching, legal advice, editing, etc. **3 a** iii **b** v **c** vi **d** i **e** vii **f** iv **g** ii **4** hazardous; consumers; performance; information; ingredient; clothing; voluntary; Australia; enforced; mandatory

11 Consumer law remedies

1 a The manufacturer **b** The consumer may be offered any one of these options. **2** Misleading and deceptive conduct includes false claims as to material matters such as price, quality and the place of origin of a good. It does not matter whether the deception was intentional or accidental. Puffery is sales patter that cannot be taken seriously. It is often meaningless and based on opinion rather than statements of fact. **3** Misleading and deceptive: b, c, d, f. Puffery: a, e, g, h. **4** Goods are of acceptable quality **5** Such signs suggest no refunds are given under any circumstances, even if the goods are defective. Suppliers are not permitted to tell consumers that the guarantees under the consumer laws do not exist. **6** These signs are lawful, as there are no consumer laws guaranteeing a refund if the purchaser merely changes their mind. The best a consumer can do is ask for a refund or exchange for the sake of customer goodwill.

12 Consumer credit

1 *Suggestions:* Illness or injury; loss of job or gone out of business **2** Debtor may end up borrowing from elsewhere to repay debt, possibly worsening their financial situation and moving further into debt. May end up defaulting on loan. Depending on circumstances, this can lead to repossession, foreclosure, bankruptcy proceedings, etc. **4 a** Financial Ombudsman Service **b** Any six out of: banks, credit unions, credit providers, mortgage brokers, foreign exchange dealers, general insurers, life insurers, insurance brokers, funds managers, financial advisers, stockbrokers. **5 a** Credit Ombudsman Service **b** Any six out of: non-bank lenders, credit unions, building societies, mortgage brokers, financial planners, debt collectors, credit licensees and representatives. **6 a** Credit unions, mortgage brokers **b** Any two out of: banks, building societies, insurers, funds managers. **7** This gives the credit provider an opportunity to fix the problem without having a complaint made against them. If the credit provider is willing to help, the problem can be solved without wasting the scheme's time and resources. **8** The scheme may issue a recommendation. If the recommendation is not followed by either party, the scheme can make a determination – that is, a decision on the merits of the dispute. If the applicant accepts the determination, it becomes binding on the credit service provider. If not, the applicant can pursue other avenues, for instance, through the courts.

13 Legal requirements of marriage

1 That both parties are over 18 years old (exceptions can be granted); the marriage must be carried out by an authorised celebrant; the marriage must be witnessed by two people aged over 18. **2 a** Whether consent was forced. **b** Although Alexandra gave her consent reluctantly, it was still valid consent. Nobody was forcing her to go through with the ceremony. It was her own decision. **3 a** Whether consent was forced. **b** It was most likely real consent. Sanjit's parents arranged the marriage and made it clear they expected their son to obey. However, there was nothing to indicate that they forced him to agree or gave him no choice. **4 a** Yes; it is not a prohibited relationship. **b** Whether consent was obtained by fraud; Mistaken as to the nature of the wedding ceremony. **c** Changying did not give real consent. She was mistaken as to the nature of the wedding ceremony, believing it to be a citizenship ceremony only. Any consent that existed was obtained by fraud. Her horror when she found out she was married is evidence of her unwillingness.

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14 Family breakdown

1 b **2** c **3** b **4** d **5** c **6** At-fault divorce required proof of one party's conduct that caused the marriage to breakdown, such as adultery. It was often difficult to prove and distressing. Having private problems on display was upsetting to many people. No-fault divorce does not require either party to have behaved in a particular way. It only requires irretrievable breakdown, evidenced by 12 months of separation. **7** *Student opinion* **8 a** *Student opinion* **b** *Consider:* The law's morals reflect the ruling and privileged classes, whom most lawyers traditionally belong to. Might not reflect what all segments of community believe. **c** *Consider:* The importance of the protection of children and the fair allocation of property.

15 Definition of an employee

1 a Has more control over how to perform the work **b** Often provides own equipment, may work at several locations **c** Set by the employer **d** No leave entitlements **e** Wage, salary, commissions, etc. **f** Deducted from earnings **g** Employees must follow employer's reasonable orders to perform work tasks **h** Can accept multiple contracts **i** Business risk carried by employer **2** Employee: publisher's premises and equipment; regular hours; not able to work for others; assigned work; salary; income tax deductions; leave entitlements **3** Independent contractor: works from home on own equipment; sets own hours; several clients; invoices **4 a** employee: publisher's premises and equipment, regular business hours, only one publisher; independent contractor: paid by the hour, no leave entitlements, submits invoices, income tax not deducted **b** More likely to be an independent contractor because of the way in which he is paid and because he receives no leave entitlements. He might be at liberty to work for other publishers as well but stays with the one publisher for long spells because they provide him with enough work.

16 Unfair dismissal

1 Employee: someone who works for an employer under a contract of service **2** It was harsh, unjust or unreasonable, or not a genuine redundancy. **3** Reinstatement, payment of compensation**. 4** true **5** false **6** true **7** false **8** It was rejected. **9 a** About one-and-a-half years. **b** Yes. He would not have been able to apply, as the *Fair Work Act 2009* provisions do not apply to people holding a job for less than one year. **10** Whether there was a valid reason based on the person's capacity to perform the job; whether they had received notification or a warning; whether they had been given a chance to respond to the problem before being dismissed. **11 a** A chance to respond before being dismissed. **b** *Student opinion*

17 Discrimination in the workplace

1 false **2** false **3** true **4** false **5** false **6** true **7** false **8** true **9** true **10** *Consider:* Court cases are more formal, time-consuming and stressful. They are more expensive and may require legal representation. They can lead to further deterioration in the relationship between the parties. However, courts can pass binding orders, such as damages or reinstatement.

18 Renting a home

1 Tenant rights: c, j; Tenant duties: a, d, g, l; Landlord rights: e, h, i; Landlord duties: b, f, k **2** The landlord's **3 a** It is an emergency repair. **b** It is not reasonable. Chloe and her children had no water or sewerage services, constituting a health hazard and virtually making the house uninhabitable. The soaked carpets were also more likely to suffer permanent damage if not attended to quickly. **4** The landlord is responsible to pay for repairs unless the damage was caused by the tenant or the tenant's guests. Tenants can arrange emergency repairs if necessary and are then entitled to reimbursement by the landlord. **5** No, Chloe did what was required of her by turning off the stop cock and calling the agent. Perhaps she should have called a plumber rather than waiting two whole days, but it was reasonable that she give the agent the chance to have it fixed first, and she did keep calling back. The carpets were already in a worn condition, and it seems that the landlord is trying to take advantage of the situation. **6 a** By breaching the residential tenancy agreement, for example, not paying rent or causing damage to the premises **b** Chloe should get her bond back. She did not breach the agreement. She would have if she had left without giving proper notice, but this was not the case. The damage to the property was not her fault and she took steps to correct it.

19 Purchasing a home

1 a **2** c **3** b **4** Corban claimed that the Levetts had entered into an oral agreement to buy the property, and that the agreement was binding. **5 a** Specific performance requires a party to carry out their promises under a contract. In this case it would require the Levetts to sign a formal contract to buy the property. **b** Damages compensate a party for loss or injury suffered. In this case Corban might be compensated for the money he spent fixing the property as per their discussion. He might try to claim the deposit, saying the Levett's breached a binding agreement. **6** The Levetts claimed that the oral agreement was not legally binding and that they did not intend it to be so. They expected the signing and exchange of contracts to make the agreement binding and that the deposit would only be released then. **7** Supreme Court of New South Wales, Court of Appeal division. **8 a** No, Corban lost his appeal. **b** The court agreed that the payment of the deposit was 'subject to contract'. In other words, the oral agreement was not a contract in itself, but merely the basis for the creation of a future contract.

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The Interactive Instant Lessons resource pack

This simple-to-use interactive series is designed for the busy teacher who needs curriculum-specific, interactive instant resources. *Civil laws and processes* features 19 full-colour lessons for the interactive whiteboard, each supported with an interactive activity or discussion questions, as well as student work sheets that can be completed onscreen or in hard copy. It also features instructions for conducting a mock civil hearing. This title is the ideal supplement to existing resources, and it has the flexibility to be used in a range of learning environments and suits a range of teaching styles.

The Interactive Instant Lessons resource pack contains:

- a CD-ROM (featuring the full interactive instant lessons: unit introductions, interactive activities and discussion questions, and interactive work sheets)
- a book of photocopiable work sheets
- quick-reference guides to every lesson.

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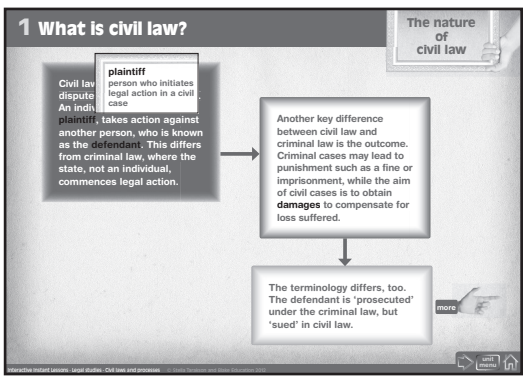

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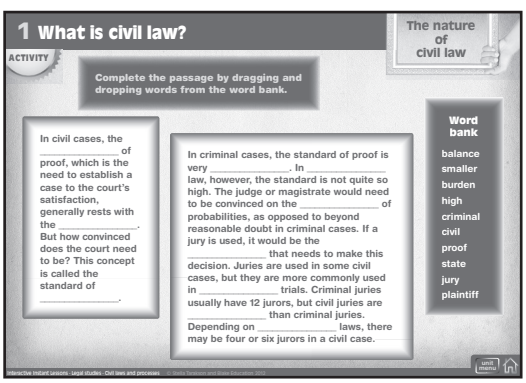
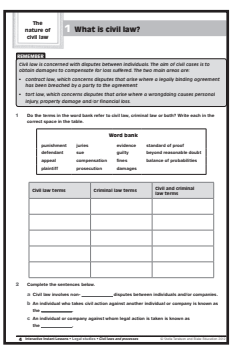
- Onscreen presentations provide a platform to introduce topics and start class discussion
- Feature diagrams, tables and flow charts
- Definitions of relevant legal terms in pop-up boxes
- Ideal for use on IWBs and laptops

Interactive activities and discussion questions



- Reinforce and extend the concepts outlined in each unit introduction
- Able to be completed as a class activity or by individual students
- Discussion questions provide a platform for class discussion
- Interactive activities include drag-and-drop, multiple-choice and true-or-false activities
- Repetition of question types to build student confidence

Work sheets



- Consolidate and revise the learnings in the unit introduction and interactive activity
- Can be set as class work or homework
- Students can complete interactive versions on the CD-ROM or photocopiable versions from the book
- Includes an extra unit with all the information needed to conduct a mock civil hearing in class

For quick-reference guides to all 19 interactive instant lessons and the mock hearing unit, see pages 4–23 of this pack.

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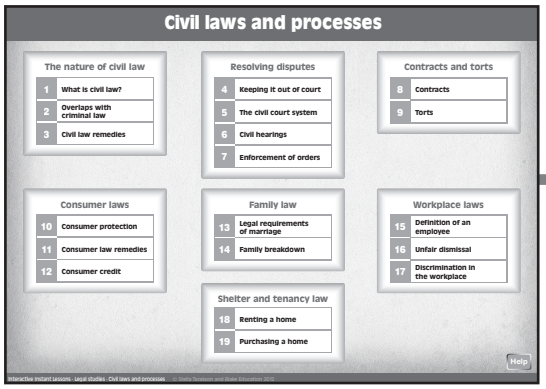
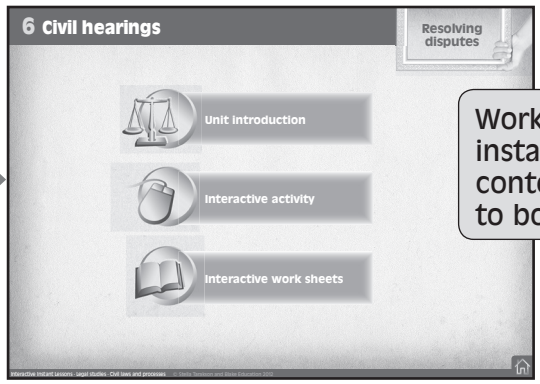
How to use the CD-ROM

Main menu

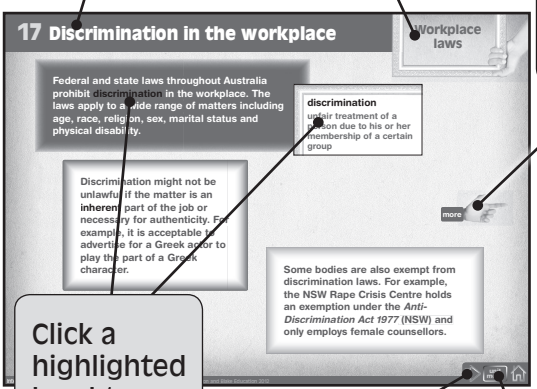


Unit menu



Work through the instant lesson content from top to bottom

Unit introduction



Unit name

Section name

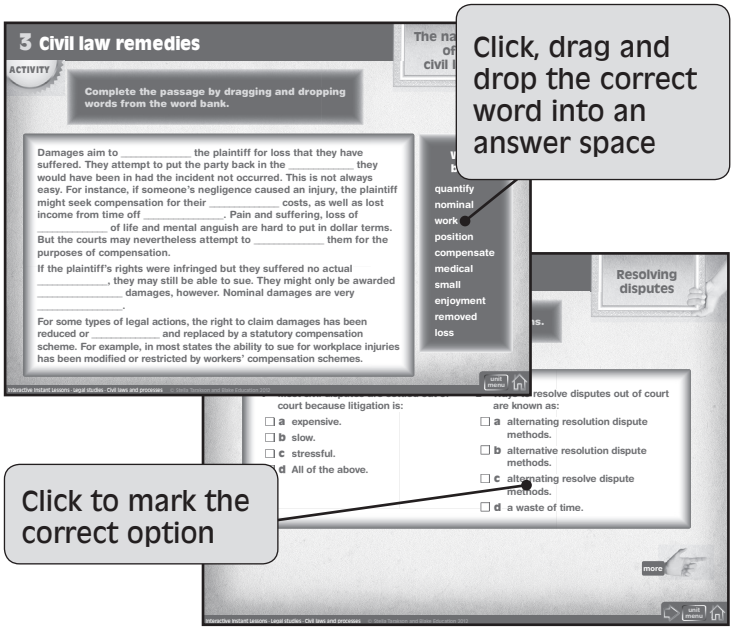
Hand icon indicates more content

Click a highlighted legal term to see its definition

Click to navigate to the next page

Click to return to the unit menu

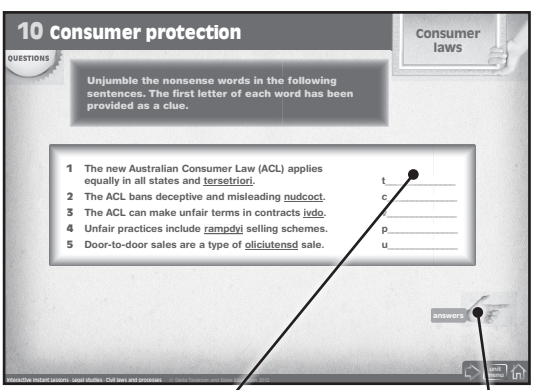
Interactive activities



Click, drag and drop the correct word into an answer space

Click to mark the correct option

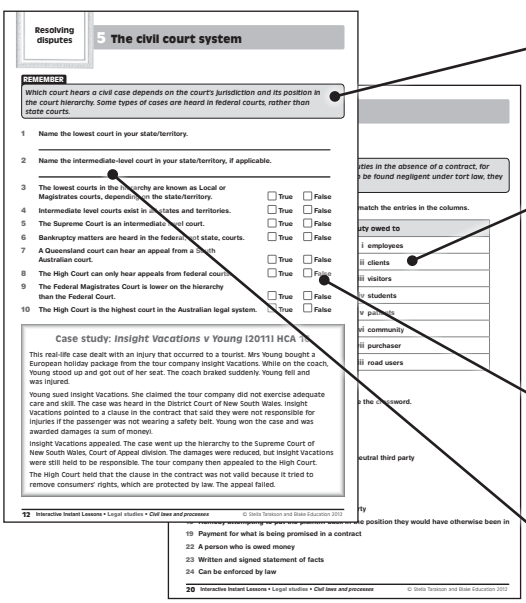
Discussion questions



Type or write your answers into each answer space

Hand icon indicates an answer page

Interactive work sheets



'Remember' text recaps main points of the lesson

Use the Line tool on the Comment & Markup toolbar (or on the Drawing Markups tab) to link the options

Click to mark the correct option

Type your answers into the answer space

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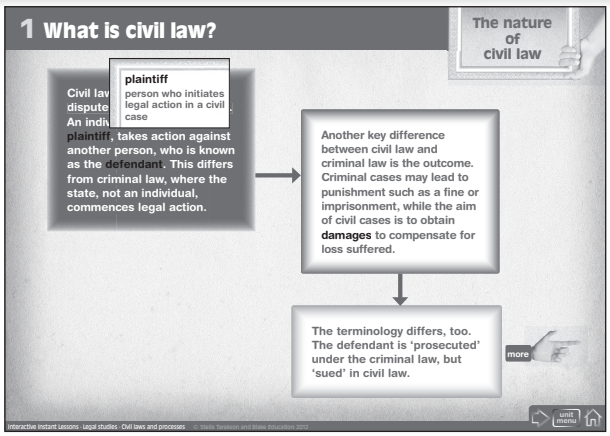
1 What is civil law?

INTERACTIVE INSTANT LESSON

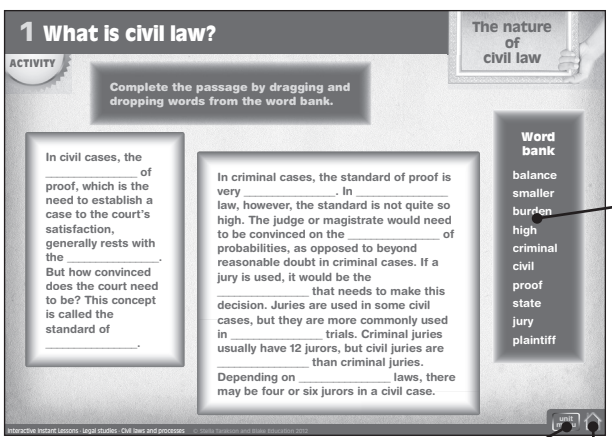
Introduction

- *Introduces civil law and the two main areas of contracts and torts.*
- *Students learn about the key differences between civil and criminal law, and about plaintiffs, defendants, damages and the standard and burden of proof.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 1. The work sheets include:

- *an activity distinguishing between civil and criminal law terms*
- *cloze questions*
- *questions about contracts, torts, the standard of proof and the burden of proof.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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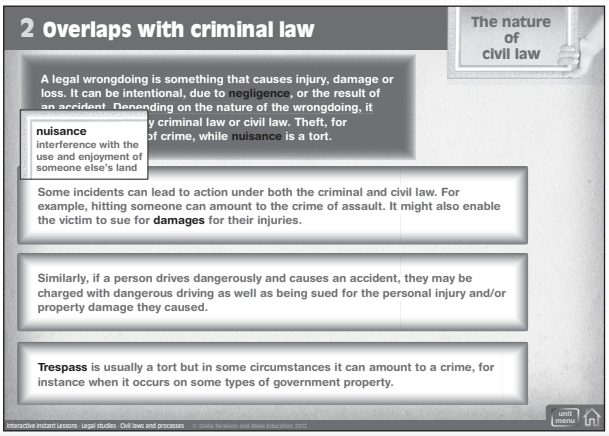
2 Overlaps with criminal law

INTERACTIVE INSTANT LESSON

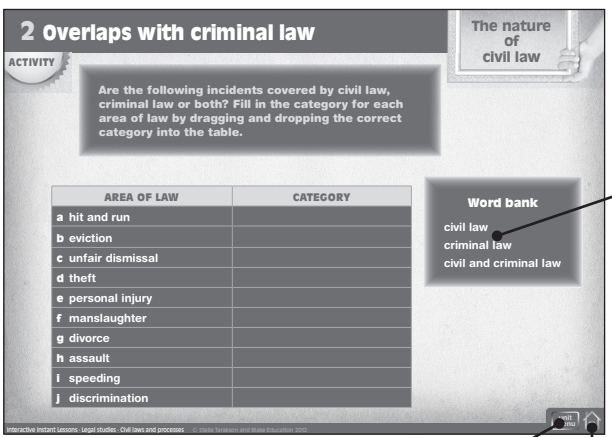
Introduction

- *Explains that a legal wrongdoing can be intentional, due to negligence or the result of an accident.*
- *Students learn that a legal wrongdoing might be covered by criminal law, civil law or both, and look at specific examples.*



Interactive activity

Complete the table by dragging and dropping the correct category into each answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 2. The work sheets include:

- *a fictional case study about a sexual assault*
- *comprehension questions about the case study and about the Victims' Compensation Scheme (TIP: Remind students of the standard of proof in civil cases, discussed in Unit 1)*
- *questions about road accidents and civil and criminal cases.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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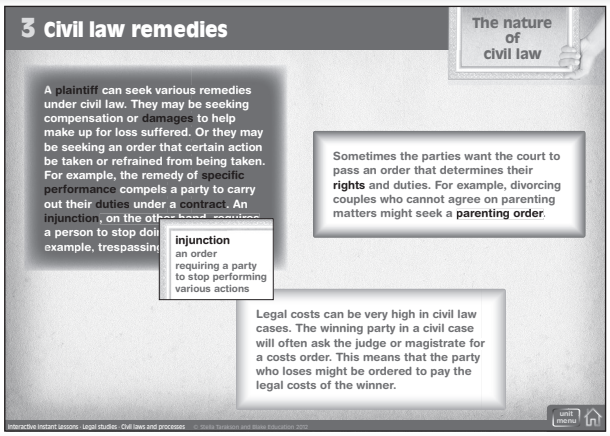
3 Civil law remedies

INTERACTIVE INSTANT LESSON

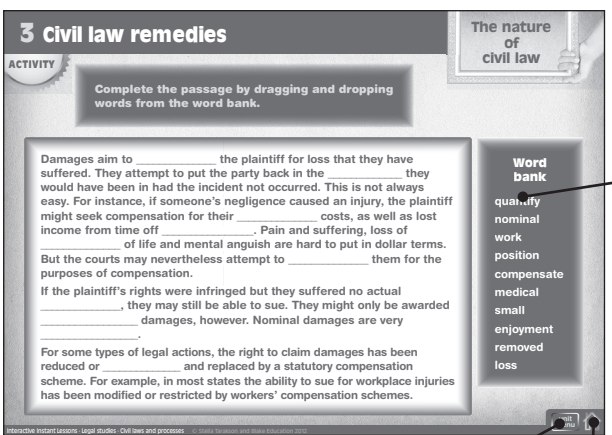
Introduction

- *Introduces the various remedies under civil law that a plaintiff might seek.*
- *Students learn about compensation and damages, specific performance, injunctions and orders such as parenting orders and orders to pay costs. (TIP: Ensure students take appropriate notes in their workbooks.)*



Interactive activity

Complete the cloze passage about damages by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 3. The work sheets include:

- *true-or-false questions about damages and costs*
- *a table of civil law remedies that needs to be completed*
- *a fictional case study, with comprehension questions. (TIP: Assist students by discussing costs involved with real estate, such as property upkeep and selling expenses.)*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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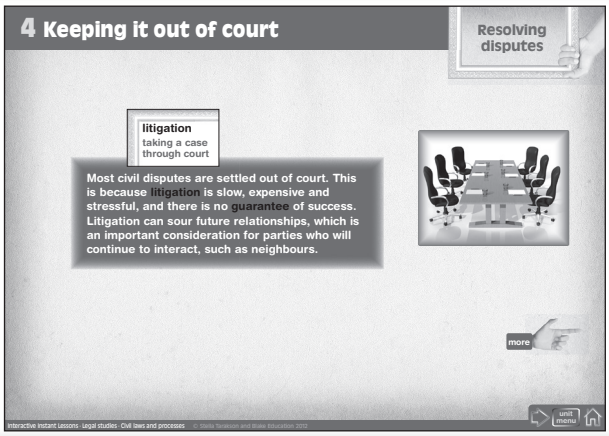
4 Keeping it out of court

INTERACTIVE INSTANT LESSON

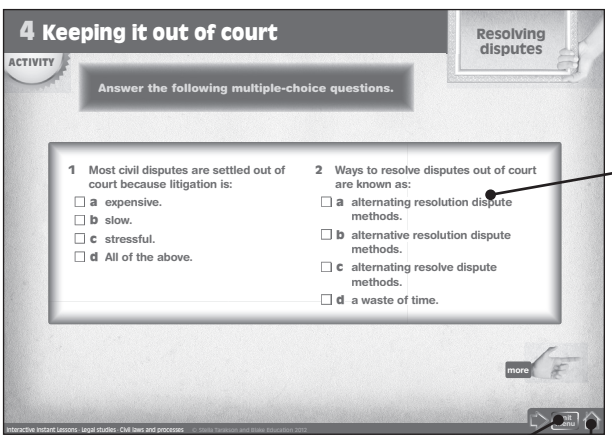
Introduction

- *Introduces alternative dispute resolution (ADR) methods.*
- *Students learn about mediation and arbitration.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 4. The work sheets include:

- *an activity that gives advantages and disadvantages of ADR over litigation*
- *a fictional case study, with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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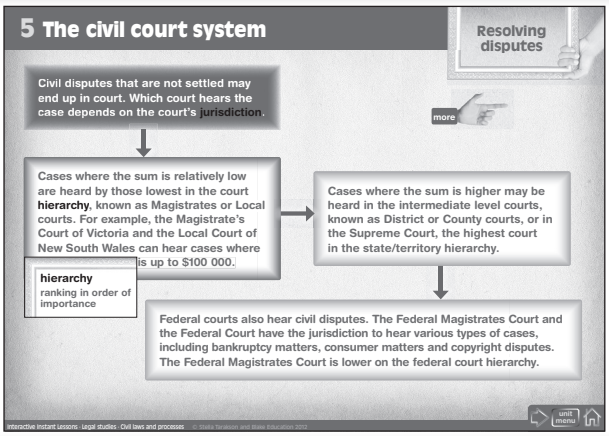
5 The civil court system

INTERACTIVE INSTANT LESSON

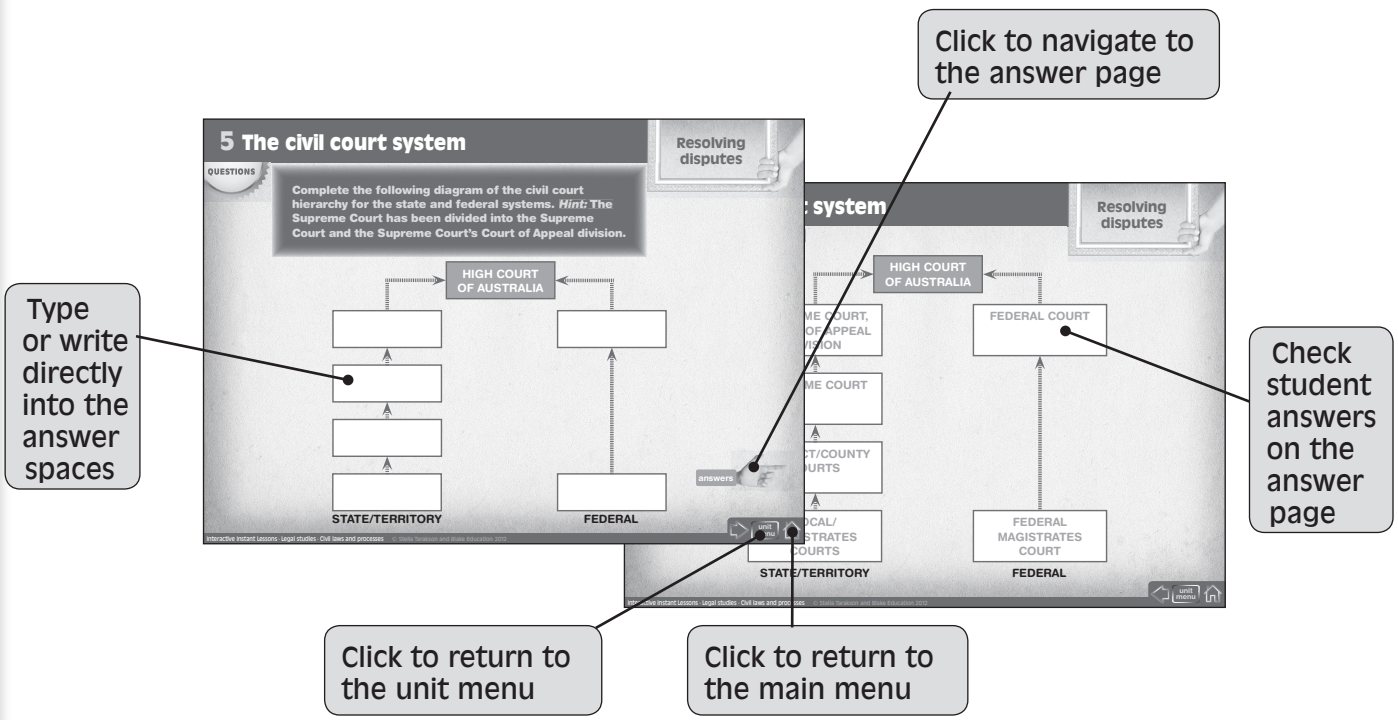
Introduction

- *Introduces the civil court hierarchy.*
- *Students learn about the jurisdictions of the courts, about state, territory and federal courts, and about appeals.*
- *Image shown: High Court building, Canberra. The High Court of Australia is at the top of the Australian court hierarchy.*



Discussion questions

Discuss and complete the diagram of the civil court hierarchy. Check your answers against those on the answer page. (TIP: Get students to copy the diagram into their workbooks.)



Work sheets

Consolidate student learning using the work sheets for Unit 5. The work sheets include:

- *questions about the courts in students' home states or territories*
- *true-or-false questions about the civil court hierarchy*
- *a real-life case study about a civil case and appeal to the High Court*
- *comprehension and extension questions about the case study.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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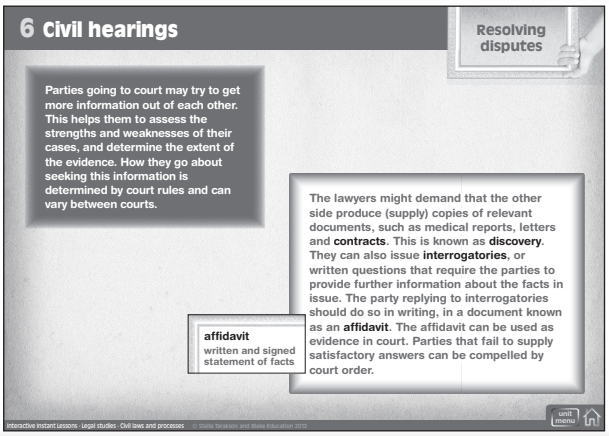
6 Civil hearings

INTERACTIVE INSTANT LESSON

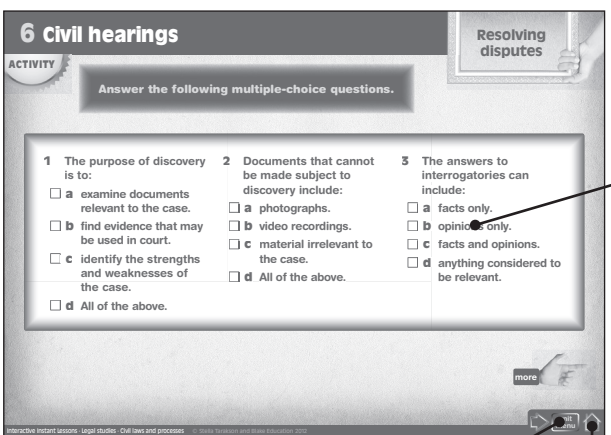
Introduction

- *Explains how parties going to court exchange information about their cases and why.*
- *Students learn about discovery and interrogatories.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 6. The work sheets include:

- *a cloze passage about the order of proceedings in a civil hearing*
- *a mind map about discovery and interrogatories*
- *true-or-false questions about court procedures.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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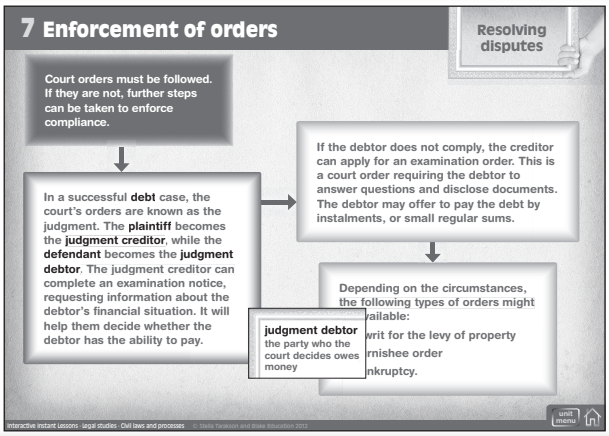
7 Enforcement of orders

INTERACTIVE INSTANT LESSON

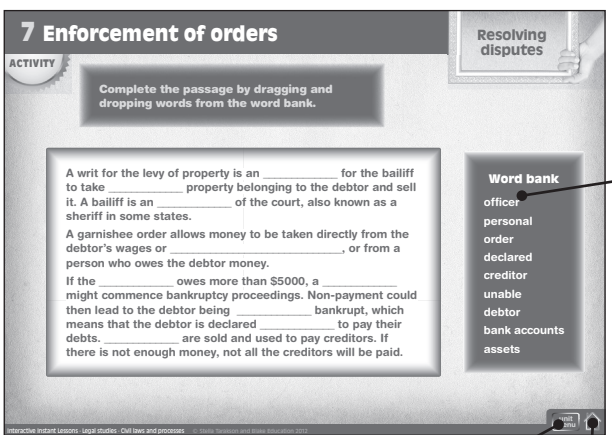
Introduction

- *Introduces court orders, with the example of orders in a debt judgement.*
- *Students learn about examination orders, writs for the levy of property, garnishee orders and bankruptcy.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 7. The work sheets include:

- *an activity matching actions in debt enforcement proceedings and their consequences*
- *true-or-false questions about court orders*
- *a fictional case study with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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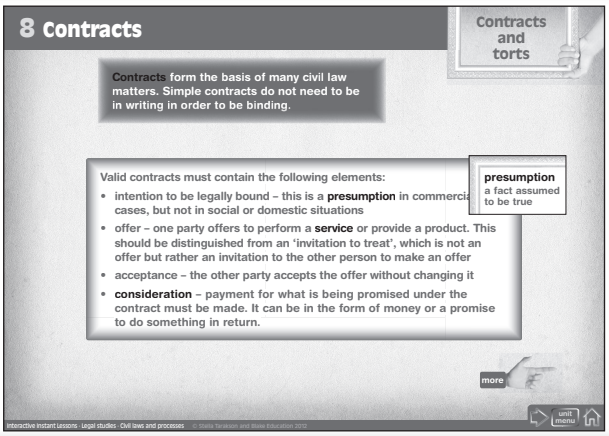
8 Contracts

INTERACTIVE INSTANT LESSON

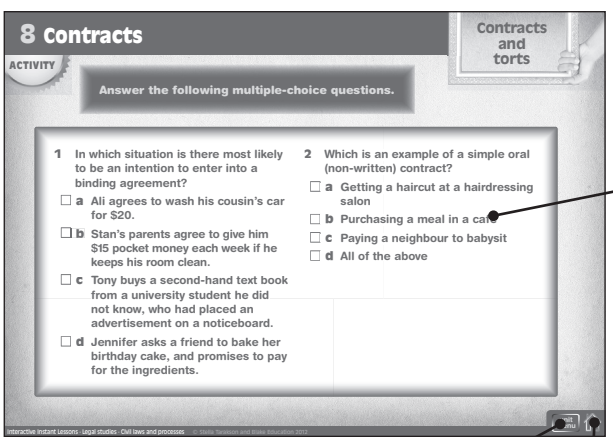
Introduction

- *Introduces contract law.*
- *Students learn the elements of a valid contract: intention to be legally bound, offer, acceptance, and consideration.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct. (TIP: Extend discussion by getting the students to describe the offer, acceptance and consideration in Question 1.)



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 8. The work sheets include:

- *multiple-choice questions on fictional scenarios*
- *a cloze passage on what may happen when a contract is broken*
- *a fictional case study with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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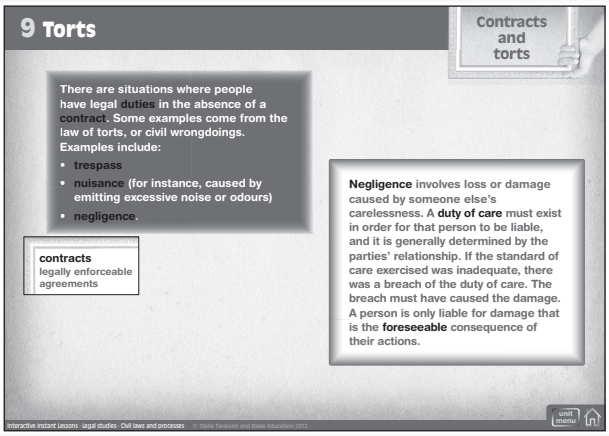
9 Torts

INTERACTIVE INSTANT LESSON

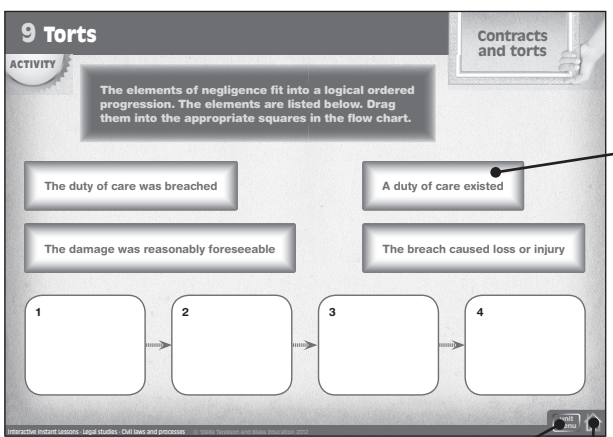
Introduction

- *Introduces the law of torts, or civil wrongdoings.*
- *Students learn that there are situations where people have legal duties in the absence of a contract.*



Interactive activity

Complete the flow chart by dragging and dropping each element into the correct answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 9. The work sheets include:

- *an activity that links people to those to whom they owe a duty of care*
- *a civil law crossword.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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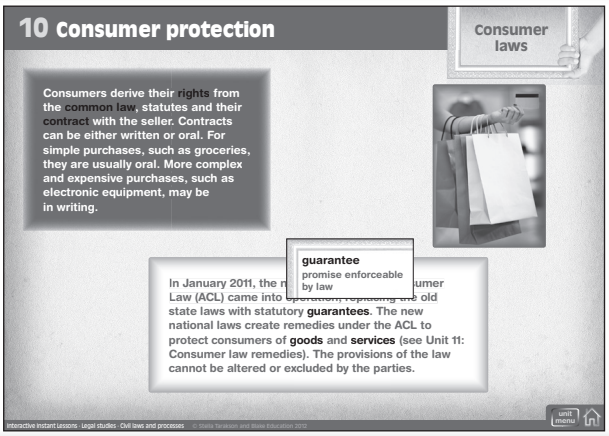
10 Consumer protection

INTERACTIVE INSTANT LESSON

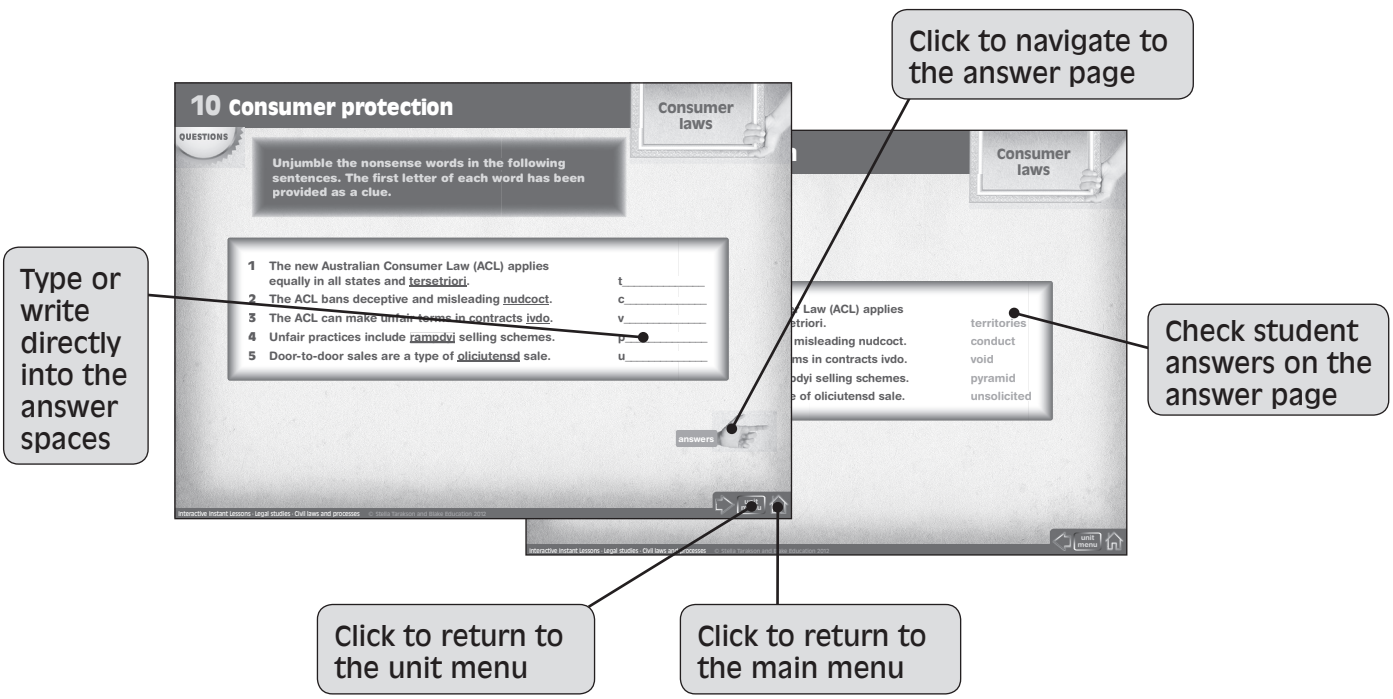
Introduction

- *Introduces the national Australian Consumer Law 2011 (ACL).*
- *Students learn where consumer laws come from: common law, statutes and contracts with the seller.*



Discussion questions

Unjumble the nonsense words in the sentences about the ACL and consumer protection. Type or write in your answer, then check your answers.



Work sheets

Consolidate student learning using the work sheets for Unit 10. The work sheets include:

- *an activity that matches ACL guarantees with breaches*
- *information on safety standards, with a cloze passage*
- *a research question about a recalled product.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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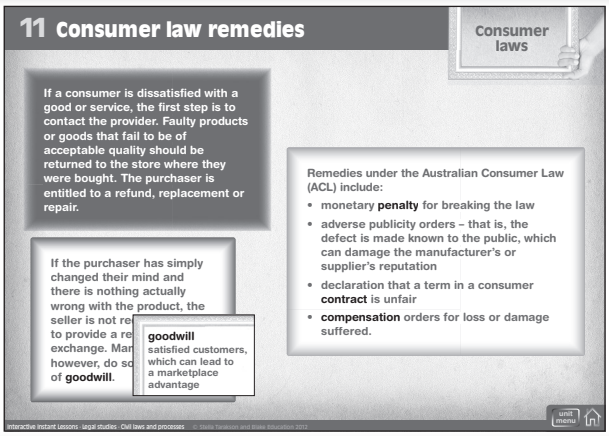
11 Consumer law remedies

INTERACTIVE INSTANT LESSON

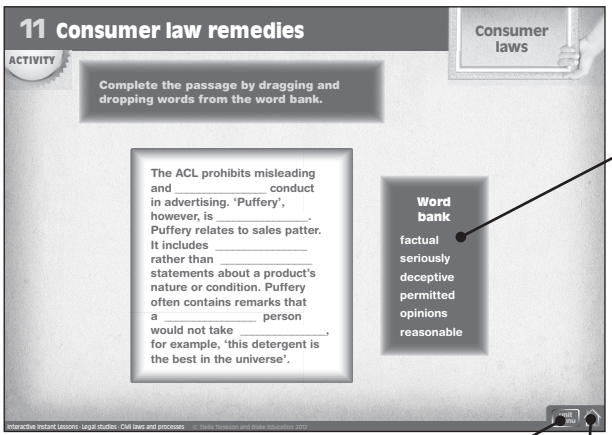
Introduction

- *Explains remedies under the national Australian Consumer Law 2011 (ACL).*
- *Students learn when a consumer is entitled to a refund, replacement or repair, plus other remedies.*



Interactive activity

Complete the cloze passage about puffery by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 11. The work sheets include:

- *questions about misleading and deceptive conduct and puffery in advertising*
- *a fictional case study, with comprehension and extension questions. (TIP: Students may need to refer back to their notes from Unit 10.)*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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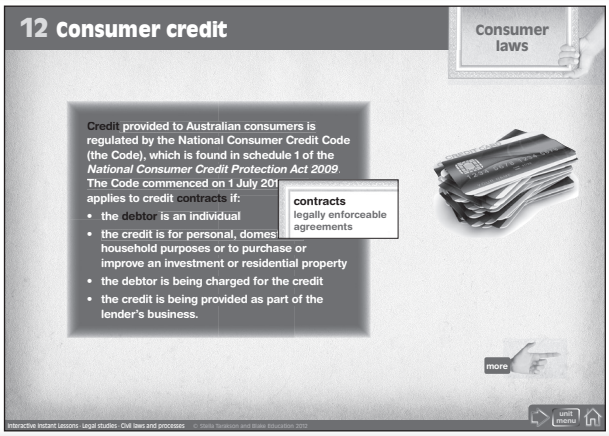
12 Consumer credit

INTERACTIVE INSTANT LESSON

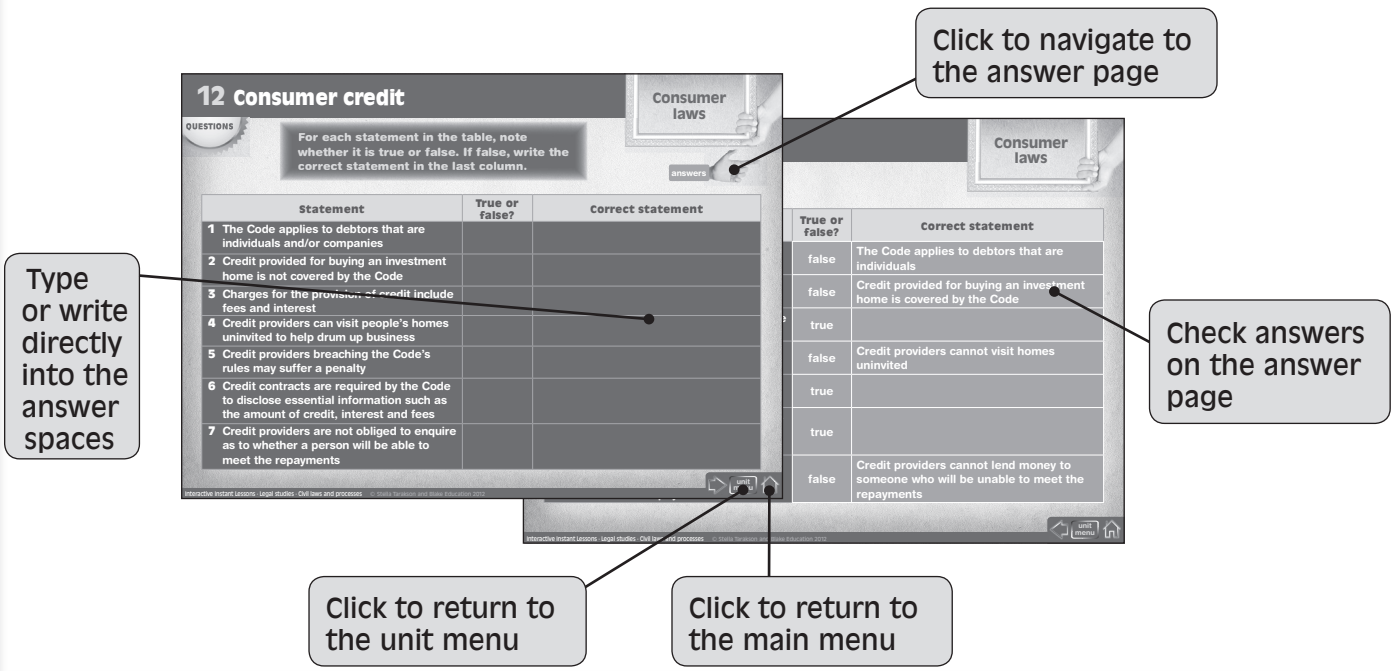
Introduction

- *Explains that credit provided to Australian consumers is regulated by the National Consumer Credit Code (the Code).*
- *Students learn about duties and responsibilities of credit providers. (TIP: Encourage students to take notes in their workbooks.)*



Discussion questions

Discuss the statements to check students' understanding. Check your answers against those on the answer page. (TIP: Students can write the correct statements into their workbooks.)



Work sheets

Consolidate student learning using the work sheets for Unit 12. The work sheets include:

- *information and questions on renegotiating the terms of a loan and External Dispute Resolution schemes.*
- *an activity that gets students to write to their bank manager, asking to renegotiate a loan.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

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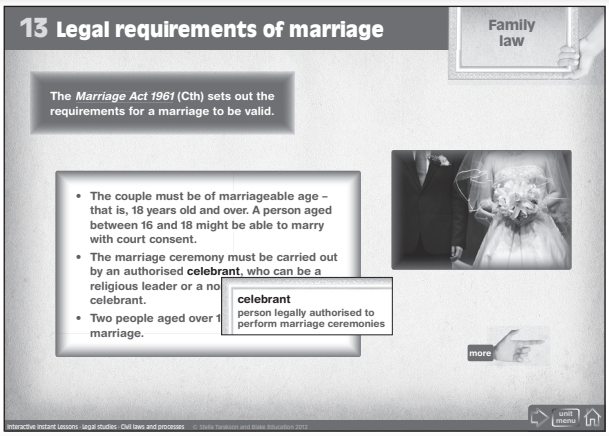
13 Legal requirements of marriage

INTERACTIVE INSTANT LESSON

Introduction

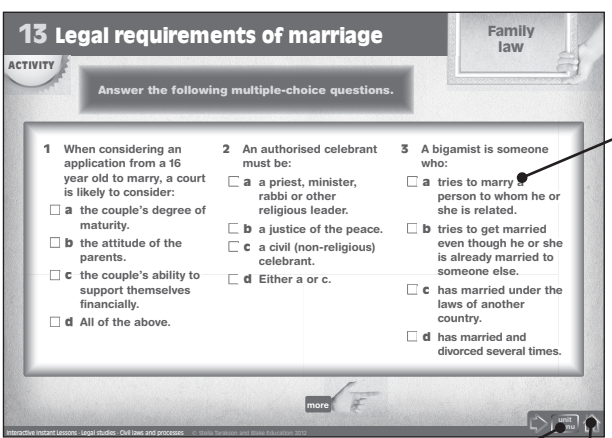
» *Explains the requirements for a marriage under the* Marriage Act 1961.

» *Students learn about factors that make a marriage legally valid or legally void.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 13. The work sheets include:

» *information about consent to marry*

» *three fictional case studies, with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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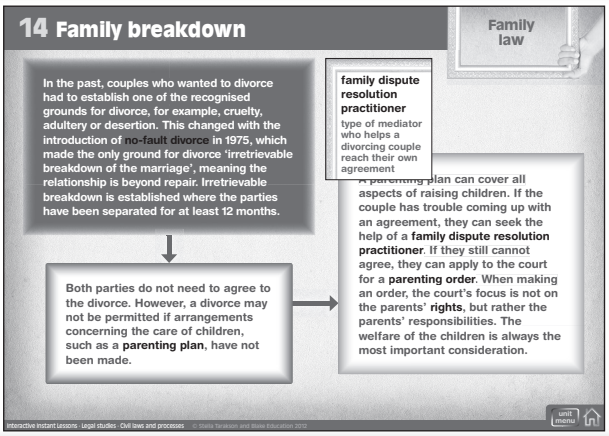
14 Family breakdown

INTERACTIVE INSTANT LESSON

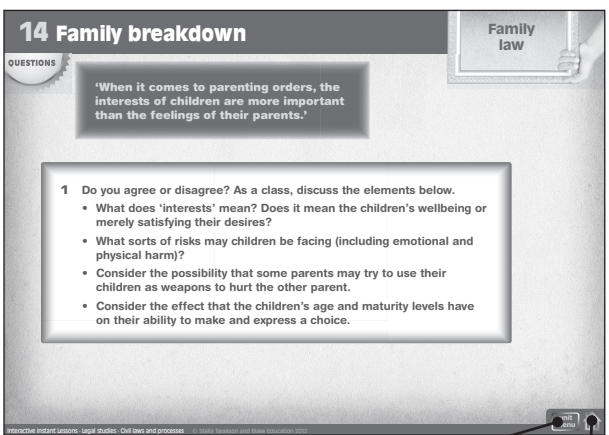
Introduction

- *Introduces no-fault divorce.*
- *Students learn about 'irretrievable breakdown', parenting plans and parenting orders.*



Discussion questions

Discuss the statement with the class: 'When it comes to parenting orders, the interests of children are more important than the feelings of their parents.' (TIP: Be aware that this may be a sensitive topic for some students.)



Work sheets

Consolidate student learning using the work sheets for Unit 14. The work sheets include:

- *multiple-choice questions on divorce*
- *a flow chart on the divorce process, with comprehension and discussion questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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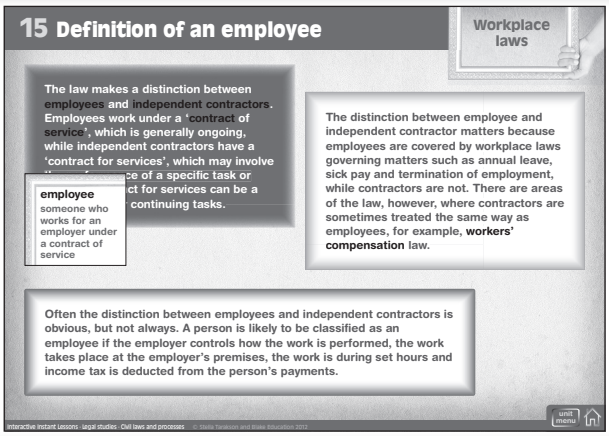
15 Definition of an employee

INTERACTIVE INSTANT LESSON

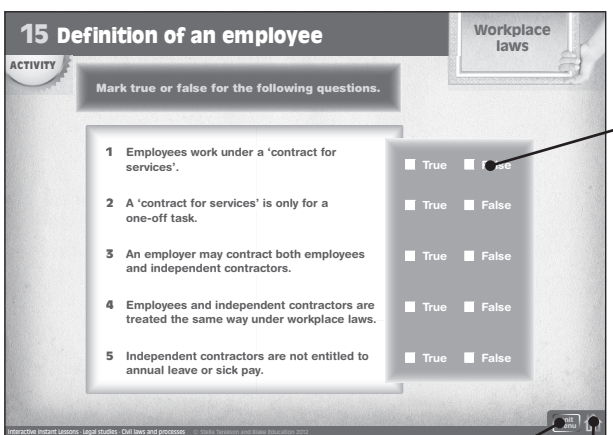
Introduction

- *Explains the distinction between employees and independent contractors.*
- *Students learn why a distinction exists between employees and independent contractors and how to tell them apart.*



Interactive activity

Mark each of the five questions 'true' or 'false'.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 15. The work sheets include:

- *a table comparing employees and independent contractors*
- *three fictional case studies, with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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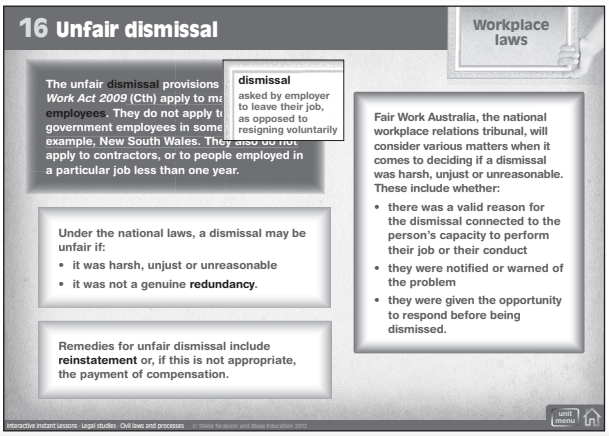
16 Unfair dismissal

INTERACTIVE INSTANT LESSON

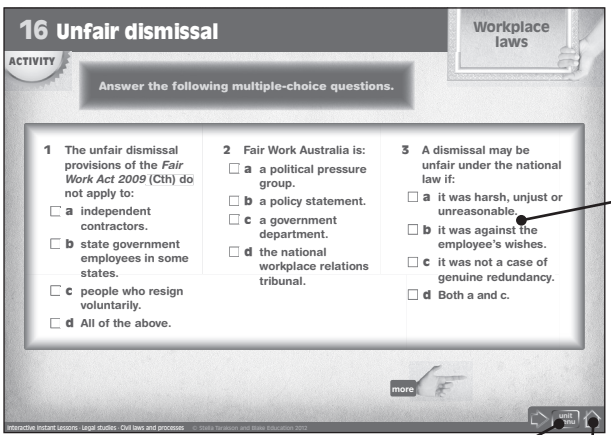
Introduction

- *Introduces unfair dismissal provisions under the* Fair Work Act 2009 *(Cth).*
- *Students learn about Fair Work Australia and what constitutes an unfair dismissal.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 16. The work sheets include:

- *questions on the definition of 'employee' and unfair dismissal*
- *true-or-false questions on unfair dismissals and remedies*
- *a real-life case study with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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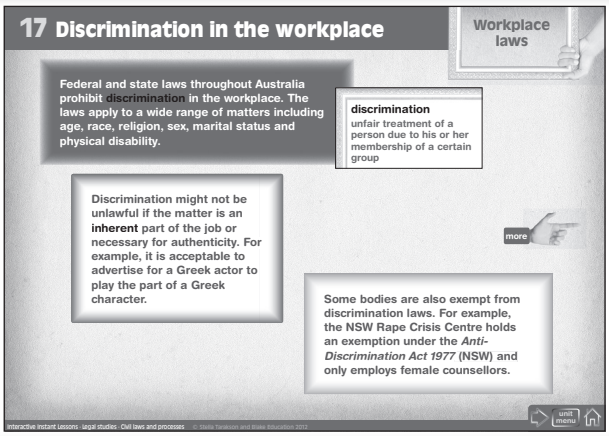
17 Discrimination in the workplace

INTERACTIVE INSTANT LESSON

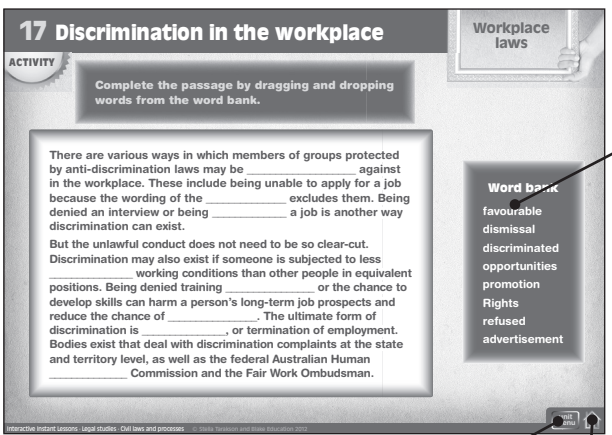
Introduction

- *Explains what is unfair discrimination in the workplace.*
- *Students learn about discrimination law, exemptions and why they exist, and direct and indirect discrimination.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 17. The work sheets include:

- *information and a flow chart on discrimination complaints*
- *true-or-false questions on discrimination*
- *a discussion question on workplace discrimination against obese people. (TIP: This question can be completed by individuals, in pairs or as a class. Use your discretion.)*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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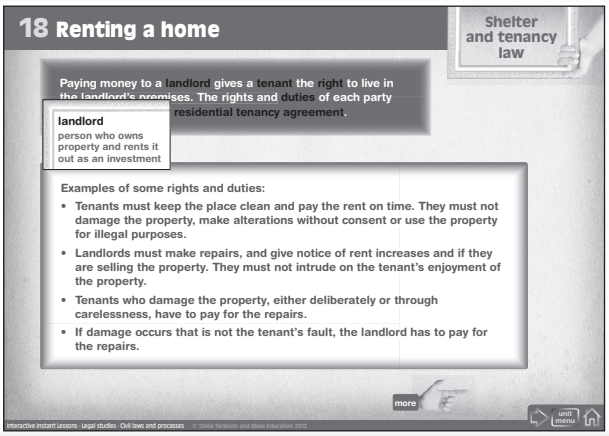
18 Renting a home

INTERACTIVE INSTANT LESSON

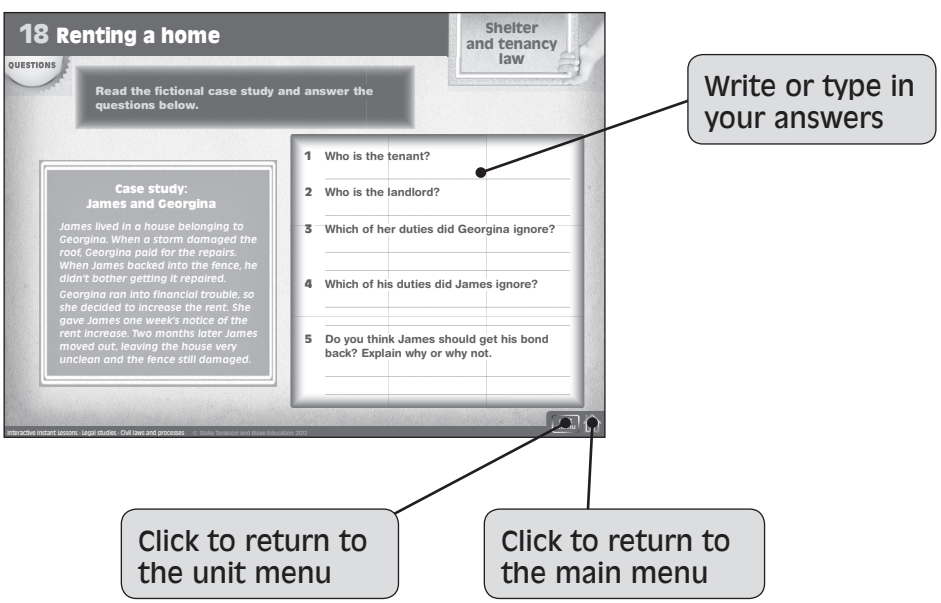
Introduction

- *Explains some of the rights and duties of tenants and landlords.*
- *Students learn about residential tenancy agreements and bonds.*



Discussion questions

Read the fictional case study and discuss the questions with the class. Write or type in your answers.



Work sheets

Consolidate student learning using the work sheets for Unit 18. The work sheets include:

- *an activity about tenant and landlord rights and duties*
- *a fictional case study, with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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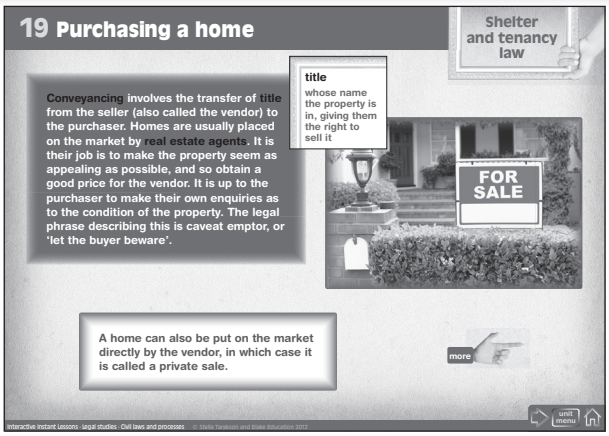
19 Purchasing a home

INTERACTIVE INSTANT LESSON

Introduction

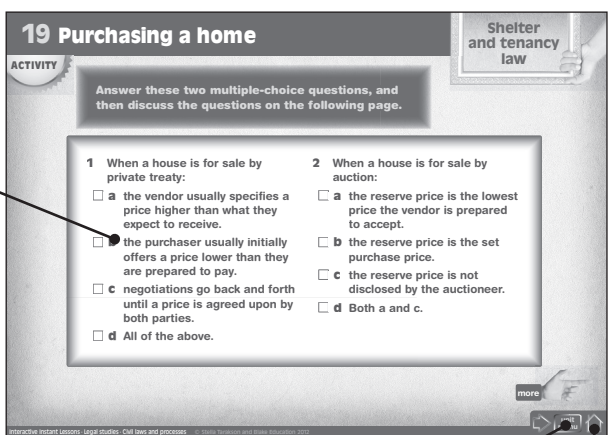
- *Introduces conveyancing.*
- *Students learn about the two ways to purchase property, deposits, contracts and cooling-off periods.*



Interactive activity

Answer each multiple-choice question by marking the option you think is correct.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 19. The work sheets include:

- *multiple-choice questions on conveyancing, private sales and cooling-off periods*
- *a real-life case study with comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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20 Mock civil hearing

Conduct a mock civil hearing using the information in Unit 20. There is no introduction, nor any interactive activities or discussion questions for this unit. The work sheets in the book contain all the information you need.

Work sheets only

The work sheets include:

- *a list of roles for students to play*
- *a case summary*
- *information on the damages claim*
- *witness statements for five witnesses*
- *courtroom tips*
- *a list of steps to take.*

20 Mock civil hearing

Now it is time to bring civil law to life by running a mock hearing. Read the following preparatory material and refamiliarise yourself with earlier material, especially Unit 6: Civil hearings and Unit 9: Torts. This is a negligence case. The purpose is to determine whether the plaintiff is entitled to damages and, if so, how much.

Roles

Judge

Presides over the court, decides matters of law and rules on the evidence.

Played by: _____

Judge's associate

The judge's assistant. Keeps lists of objections made by barristers, as well as the judge's responses to the objections.

Played by: _____

Court officer

Opens and closes court, maintains order. Calls witnesses and administers the oath or affirmation. For example, the witness might say 'I swear by Almighty God that the evidence I give will be the truth, the whole truth, and nothing but the truth'. An affirmation is similar but without the religious reference, and can begin 'I solemnly and sincerely declare and affirm that ...'.

Also passes any relevant documents from barristers to the judge's associate.

Played by: _____

Court reporter

Records proceedings, reads back transcript if required.

Played by: _____

Jurors

Decide matters of fact. Their use in civil hearings varies between states and they would often not be used in such cases. There should be 4–6 jurors for the mock hearing.

Played by (4-6 people): _____

_____

_____

_____

Barristers

Present their clients' cases. Make opening addresses, question witnesses and argue relevant points of law.

Barrister for plaintiff played by: _____

Barrister for defendant played by: _____

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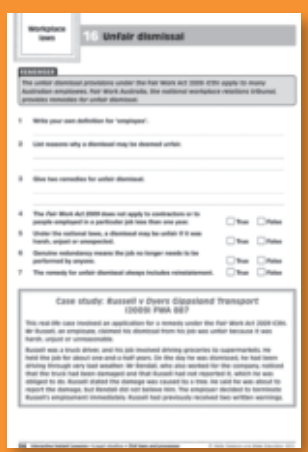
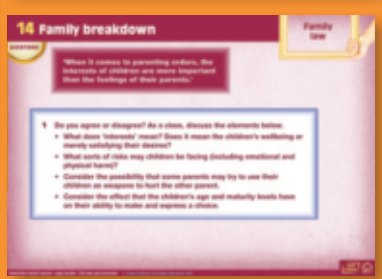
INTERACTIVE INSTANT LESSONS – LEGAL STUDIES
Quality ready-to-use resources

This simple-to-use interactive series is designed for the busy teacher who needs curriculum-specific, interactive instant resources. The series features full-colour lessons for the interactive whiteboard, supported with interactive activities and discussion questions, as well as student work sheets that can be completed onscreen or on hard copy. It is the ideal supplement to your existing resources, and it has the flexibility to be used in a range of learning environments and suits a range of teaching styles.

THE FOLDER CONTAINS

- Quick-reference guides that draw together each element of the lesson
- Photocopiable student work sheets
- A range of real-life and fictional case studies
- Selected answers for easy and efficient marking





THE CD-ROM CONTAINS

- Interactive instant lessons for IWBs and laptops
- Pop-up definitions of legal terms
- Interactive activities to consolidate learning
- On-screen questions to facilitate class discussion
- Interactive PDF work sheets

CIVIL LAWS AND PROCESSES includes 19 easy-to-use lessons covering:

- The nature of civil law
- Resolving disputes
- Contracts and torts
- Consumer laws
- Family law
- Workplace laws
- Shelter and tenancy law.

The book also includes a comprehensive brief for conducting a mock hearing.

UNITS INCLUDE

- ✓ What is civil law?
- ✓ Keeping it out of court
- ✓ Civil hearings
- ✓ Consumer protection
- ✓ Consumer credit
- ✓ Family breakdown
- ✓ Unfair dismissal
- ✓ Renting a home
- ✓ And much more...

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